

Chapter 8-8. Use Regulations

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8-8-1. Allowed Uses

Each district allows a range of uses as set forth in *Table 8-1 (Use Table)*. Uses are organized as described below. A Development Permit is required for the construction of a structure or any structural alteration, as defined herein, regardless of whether the activity is a permitted, conditional, interim, or administrative use.

- A. **Permitted Uses.** Permitted uses are identified by the **P** symbol in the Use Table. These uses are permitted by right in corresponding districts as designated in the Use Table, provided they comply with all other applicable provisions of this Ordinance.
- B. **Conditional Uses.** Conditional uses are identified by the **C** symbol in the Use Table. They may be permitted in corresponding districts through the process described in 8-11-7 (*Conditional Use Permits*) provided they comply with all other applicable provisions of this Ordinance.
- C. **Interim Uses.** Interim uses are identified by the **I** symbol in the Use Table. They may be approved in corresponding Districts through the process described in 8-11-8 (*Interim Use Permits*), provided they comply with all other applicable provisions of this Ordinance.
- D. **Administrative Uses.** Uses requiring administrative approval are identified by the **A** symbol in the Use Table. Such uses may be approved for a temporary duration or an indefinite period but do not require a Conditional Use Permit or an Interim Use Permit.
- E. **Accessory Uses.** Accessory uses are listed at the bottom of the Use Table. An accessory use may only be permitted on a property with a conforming principal use and may be permitted by right, as an administrative or as a conditional or interim use in corresponding districts, provided they comply with all other applicable provisions of this Ordinance. Accessory uses subject to conditional approval shall be reviewed through the conditional use process described in 8-11-7 (*Conditional Use Permits*).
- F. **Subdivisions.** Subdivision plats, lot combinations, and lot line adjustments are identified by the **PL** symbol in the use Table. Such activities are not permitted by right but must go through the process for administrative subdivisions or major subdivisions.
- G. **Prohibited Uses.** A blank cell in the table indicates that the use is prohibited in the corresponding district. Further, any use that is not listed in the Use Table shall be prohibited in all districts unless:

1. The Planning Commission determines that such use is sufficiently similar as a listed use;
or
 2. The Use Table is amended via an approved text amendment, as described in 8-11-9 (*Land Development Ordinance Text Amendments*), to allow the use as a permitted, conditional, interim, or administrative use in one or more districts.
- H. **District Requirements.** All allowed uses shall be subject to the requirements of the corresponding base district(s) and any overlay district(s), as applicable. District names are abbreviated as indicated by 8-1-9 (*Establishment of Districts*).
- I. **Use Standards.** Certain uses must comply with specific use standards, as set forth in this Chapter, or additional regulations, as may be required by one or more overlay districts. Where multiple districts apply to property, the strictest standards shall control. The last column in the *Table 8-1 (Use Table)* provides references to Ordinance sections with applicable standards.

Table 8-1. Use Table

* Uses allowed in the Flood Fringe District and the Landing Field District (not listed) are the same as those allowed for the underlying base district.

USE TYPE	ZONING DISTRICTS															USE STANDARDS
	Base Districts				Floodplain Districts		Shoreland Districts				Resource Protection Districts			Urban Expansion Districts		
	AG	ASC	HC	LHC	FW	GFP	SP-LD	SP	RD	GD	RP-WHP	RP-BIO	RP-AGG	UE (T1)	UE (T2)	
AGRICULTURAL USES																
Administrative subdivisions	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL			
Standard subdivisions	PL	PL	PL	PL			PL	PL	PL	PL						
Cluster subdivisions	PL		PL	PL			PL	PL	PL	PL						
Agricultural or natural resources subdivision	PL						PL	PL	PL							
Commercial agricultural uses	P	P		P	P	P	P	P	P	P	P	P	P	P	P	8-4-8 (shoreland)
Agriculture service establishment	C	P	C												C	8-8-2(B)
Agricultural tourism	I	I					I	I	I	I	I	I	I	I	I	8-8-2(C)
Animal feedlot, new (10-49 AU)	A											A	A			
Animal feedlot/confined animal feedlot, new (50 or more AU)	C											C	C			8-8-2(A)
Animal feedlot/confined animal feedlot, expansion or resumption of existing (up to 999 AU in shoreland districts)	A/C						C	C				C	C			8-8-2(A); 8-4-8 (shoreland)
Farm buildings (non-dwellings)	P				C		P	P	P	P	P	P	P	C	C	8-3-7 (floodway)
Forest land conversion	P					C	C	C								8-4-11 (shoreland)
Forest management	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	8-4-11 (shoreland)
Grain bins	P	P	P	P		P	P	P		P	P	P	P	P	P	
Seasonal farm produce sales (on-site)	P	P	P	P		P	P	P	P	P	P	P	P	P	P	8-8-7(K)
Seasonal farm produce sales (off-site)	I	I	I	I		I	I	I	I	I	I	I	I	I	I	8-8-7(K)
Temporary agricultural worker housing	I															8-8-2(D)
RESIDENTIAL USES																
Dwelling, single-family	P	P				C	P	P	P		P	P	P	P	P	
Dwelling, two-family	P	P													P	8-8-3(A);
Bed and breakfast	I	I					I	I	I		I	I	I	I	I	
Intentional Living Community	I															8-8-3(D)
Manufactured home (single-family)	P	P				C	P	P	P		P	P	P	P	P	8-8-3(B)
Residential PUD*	C/PL*						C/PL	C/PL	C/PL							8-4-14 (shoreland)

USE TYPE	ZONING DISTRICTS															USE STANDARDS
	Base Districts				Floodplain Districts		Shoreland Districts				Resource Protection Districts			Urban Expansion Districts		
	AG	ASC	HC	LHC	FW	GFP	SP-LD	SP	RD	GD	RP-WHP	RP-BIO	RP-AGG	UE (T1)	UE (T2)	
Supervised living facility (fewer than six residents)	P	P					P	P	P		P			P	P	8-8-3(C)
Supervised residential facility (more than six residents)	C	C									C			C	C	8-8-3(C)
RECREATIONAL USES																
Campground	C				C	C		C	C				C		C	8-8-5(A)
Controlled access lot	P						P	P	P							8-4-8 (shoreland)
Golf course or driving range	C					C	C	C	C				C	C	C	
Hunting or game reserve	P				P	P					P	P	P			
Park	P	P			P	P	C	C	C	C	C	C	C	P	P	
Picnic ground	P	P			P	P	P	P	P	P	C	C	C		C	8-3-8 (floodplain)
Shooting/archery range (indoor)	C												C		C	8-8-5(B)
Shooting/archery range (outdoor)	C				C	C							C		C	8-8-5(B)
Trails, motorized and non-motorized	P	P			P	P	P	P	P		P	C	P	C	P	8-3-7 (floodway)
Water-dependent use	P				C	C	C	C	C							8-4-8 (shoreland)
Wildlife/nature preserve	P				P	P	P	P	P		P	P	P	P	P	8-3-7 (floodway)
CIVIC & INSITUTIONAL USES																
Cemetery	C	C											C		C	
Designated historic site	P	C	C	C	P	P	C	C	C	C	C	C	C		C	
Government building or facility	C	P	P	P							C		C	C	C	
Religious institution	C	P					C	C	C	C	C			C	C	
School	C	C												C	C	
COMMERCIAL & INDUSTRIAL USES																
Light industrial uses, excluding those listed		C	C	C												
Retail sales and services, excluding those listed		P	P	C												
Adult entertainment use			C	C												8-8-4(B)
Airport, private	C							C								8-8-4(C)
Asphalt batch plant/ready-mix plant	I		I										I			8-8-4(E)
Automotive repair			P	C												
Bar		C	P	C												
Cannabis or lower-potency hemp uses			C	C												8-8-4(M)

USE TYPE	ZONING DISTRICTS															USE STANDARDS
	Base Districts				Floodplain Districts		Shoreland Districts				Resource Protection Districts			Urban Expansion Districts		
	AG	ASC	HC	LHC	FW	GFP	SP-LD	SP	RD	GD	RP-WHP	RP-BIO	RP-AGG	UE (T1)	UE (T2)	
Commercial entertainment use		C	P	C												
Commercial PUD*	C/PL*						C/PL	C/PL	C/PL	C/PL						8-4-14 (shoreland)
Extractive use	A/I											A/I	A/I			8-8-4(D)
Gas station/convenience store		C	C													
Kennel	I	I	I	I			I	I					I		I	8-8-4(I)
Landscaping, nursery, or building material sales		P	P	C											P	
Motel/hotel		C	P	C												
Motor sports facility	C		C													
Office		P	P	C												
Precast concrete plant	C	C	C													8-8-4(F)
Restaurant		C	P	C												
Retreat center or wedding venue	C							C	C			C	C		C	8-8-4(J)
Shop condo		C/PL	C/PL	C/PL												
Storage/stockpiling of extracted materials	I	I	I	I						I	I	I	I		I	
Salvage yard	C	C	C													8-8-4(H)
Service business		P	P	P										I	I	8-8-4(K)
Storage units	C	P	P	C						C	C				C	8-8-4(L)
Temporary tire, waste collection, or recycling operation	I	I	I	I									I		I	
Vehicle and equipment sales		I	P	I												8-8-4(G)
Warehouse	C	P	P	C											C	
Wholesale business	C	P	P	C											C	
PUBLIC SERVICE & UTILITY USES																
Essential services	C	C	C	C						C	C	C	C	C	C	8-8-6(A)
Landfill, public	P												P			
Landfill, demolition wastes only	C												C			
Communication towers	C	C	C	C						C	C	C	C	C	C	8-8-6(B)
Meteorological towers	I	I			I	I	I			I	I	I	I			8-8-6(B); 8-8-6(D)
Radio or television transmission facility	C		C	C						C	C		C		C	
Railroad, street, bridge, utility transmission line or pipeline	P	P	P	P	P	C	P	P	P	P	P	P	P	P	P	8-3-10 (floodplain)

USE TYPE	ZONING DISTRICTS															USE STANDARDS
	Base Districts				Floodplain Districts		Shoreland Districts				Resource Protection Districts			Urban Expansion Districts		
	AG	ASC	HC	LHC	FW	GFP	SP-LD	SP	RD	GD	RP-WHP	RP-BIO	RP-AGG	UE (T1)	UE (T2)	
Towers exclusively for governmental or national defense purposes	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	
Solar farm	C					C	C	C		C	C		C		C	8-8-6(C)
Wind energy conversion system (Tier 1)	C						C			C	C	C	C			8-8-6(D)
Wind energy conversion system (Tier 2)	P	P	P	P			P			C	C	C	C			8-8-6(D)
Wind energy conversion system (Tier 3)	P	P	P	P			P	C	C	C	P	P	P	P	P	8-8-6(D)
ACCESSORY** & MISCELLANEOUS USES																
Above-ground storage of petroleum products	P	P	P	C							P		P			8-8-7(I)
Accessory dwelling unit	P	P									P	P	P		I	8-8-7(B)
Accessory solar energy system	P	P	P	P		P	P	P	P	P	P	P	P	P	P	8-8-6(D)
Day care (in-home)	P	P					P	P	P		P	P	P	P	P	8-8-7(D)
Accessory structure or garage (non-commercial)	P	P	P	P	P	P	P	P	P		P	P	P	C	C	8-8-7(A)
Guest cottage							P	P	P							8-4-8 (shoreland)
Home occupation, interim	I	I					I	I	I		I	I	I	I	I	8-8-7(C)
Home occupation, administrative	A	A				A	A	A	A		A	A	A	A	A	8-8-7(C)
Horse boarding/stables	I	I									I	I	I	I	I	
Farm animals on residential lots	P	P			P	P	P	P	P		P	P	P	P	P	8-8-7(E)
Levee, dike, or floodwall	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	8-3-7 (floodway)
Levee, farmstead ring	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	8-3-7 (floodway)
Parking and loading areas	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	8-4-10 (shoreland)
Placement of fill under 1,000 cubic yards	P	P	P	P	P						P	P	P	C	C	8-3-8 (flood fringe)
Placement of fill over 1,000 cubic yards	C	C	C	C	C						C	C	C	C	C	8-3-8 (flood fringe)
Swimming pool	P	P	P	P			P	P	P		P	P	P		P	8-8-7(H)
Vehicle storage (outdoor)	P	P	P	P	P	P	P	P	P	P	P	P	P		P	8-8-7(F)
Recreational vehicles	P	P	P	P	C	C	P	P	P	P	P	P	P		P	8-8-7(G)
Storage yards	C	C	C	C	C	C				P			I		I	8-8-7(J)
Yard waste composting site	I	I	I	I		I	I	I	I		I	I	I	I	I	
Water-oriented accessory structure							P	P	P	P						8-4-10 (shoreland)
All temporary uses	I	I	I	I	I	I	I	I	I	I	I	I	I	I	I	8-8-8

*Commercial and residential PUDs are permitted only in the Agricultural General Zoning District with a Shoreland Overlay District. **Accessory uses may be converted to principal uses with a Conditional Use Permit.

8-8-2. Agricultural Uses

A. Animal Feedlots.

1. **Purpose and Right to Farm.** An adequate supply of healthy livestock and poultry is essential for the wellbeing of Clay County citizens and the state. Clay County supports the right to farm for agricultural operations that are conducted according to generally accepted farming practices. However, animal manure may contaminate the environment when improperly stored, transported, or disposed of. The purpose of this section is to regulate feedlot facilities and animal manure resources, which may adversely impact the health, safety, and general welfare of the public.
2. **Compliance with Minnesota Statutes.** These rules comply with the policy and purpose of the State of Minnesota regarding the control of pollution set forth in Minnesota Administrative Rules Chapter 7020 (MR 7020). Clay County hereby adopts MR 7020 and this section shall be interpreted and enforced by the more restrictive standard in effect. In the event of a conflict between MR 7020 and 8-8-2(A), the rules found in MR 7020 shall prevail.
3. **Exemptions.** The following agricultural uses are not considered to be animal feedlots and are exempt from the requirements of this section:
 - a. Any site with fewer than 10 animal units.
 - b. Pastures, as defined herein.
4. **Definitions.** The following definitions shall apply to this section:
 - a. **Animal feedlot.** As defined by MR 7020, a lot or structure or combination of contiguous lots and structures intended for the confined breeding, raising, or holding of animals and specifically designed as a confinement area in which manure may accumulate, or where the concentration of animals is such that a vegetative cover cannot be maintained within the enclosure. For the purposes of this section, the definition of feedlot shall include the following:
 - i. Any site with 10 or more animal units.
 - ii. Open lots used for the feeding and rearing of poultry (poultry ranges).
 - b. **Animal unit.** A unit of measure used to compare differences in the production of animal manure which has a standard, the amount of manure produced on a regular basis by a 1,000-lb slaughter steer or heifer. A multiplication factor set by the Minnesota Pollution Control Agency in MR 7020 is hereafter adopted by reference without change except as may be amended by the state.
 - c. **Animal manure.** Poultry, livestock, or other animal excreta or a mixture of excreta with feed, bedding, precipitation, or other materials.
 - d. **Best management practices.** The most effective and practicable means of erosion prevention, sediment control, and water quality management as published by state or designated area-wide planning agencies.
 - e. **Change in operation.** An alteration of the permitted number of animal units,

change of animal genus, or a change in the construction or operation of an animal feedlot that would affect the storage, handling, utilization, or disposal of manure.

- f. **Confined animal feedlot.** A feedlot that is entirely contained within a roofed structure.
- g. **Construction short-form permit.** A permit issued for an animal feedlot or manure storage area pursuant to MR 7020.0505 and MR 7020.0535.
- h. **County Feedlot Officer.** A County or Soil and Water Conservation District employee, appointed by the County Board, to administer the provisions of this chapter and MR 7020.
- i. **Corrective or Protective measure.** A practice, structure, condition, or combination thereof which prevents or reduces the discharge of pollutants from an animal feedlot to a level of conformity with MPCA rules.
- j. **Domestic fertilizer.** Domestic fertilizer means:
 - i. animal manure that is applied on or injected into the soil to improve the quality or quantity of plant growth or;
 - ii. animal manure that is used as compost, soil conditioners, or specialized plant beds.
- k. **Drainage ditch.** A man-made trench that is dug for the purpose of draining water from the land or for transporting water for use on the land and that is not built for navigational purposes.
- l. **Existing animal feedlot.** An animal feedlot that has registered with Clay County or the MPCA prior to the effective date of this Ordinance and that has been utilized for livestock production within the past five years.
- m. **Expansion.** Any activity that may result in an increase in the number of animal units that an animal feedlot is capable of holding or an increase in storage capacity of a manure storage area.
- n. **Feedlot operator.** An individual, corporation, group of individuals, partnership, joint venture, owner, or any other business entity having charge or control of one or more livestock feedlots, poultry lots, or other animal lots.
- o. **Feedlot permit.** A document issued by the MPCA or Clay County that contains requirements, conditions, and compliance schedules relating to the discharge of animal holding areas or manure storage areas. These permits include NPDES, SDS, construction short-form, and interim.
- p. **Feedlot registration.** Required information for animal feedlots and manure storage areas pursuant to MR 7020.0350.
- q. **Feedlot runoff.** The movement of water, in any form, from or through a feedlot, carrying particles of animal manure or process wastewater into a body of water, ditch, right-of-way, or to a channelized flow environment.
- r. **Interim permit.** In this section, “interim permit” shall mean a permit issued by

the MPCA or County Feedlot officer to correct a pollution hazard in accordance with MR 7020.0505 and MR 7020.0535.

- s. **Manure storage area.** An area where animal manure or process wastewaters are stored or processed. Short-term and permanent stockpile sites and composting sites are manure storage areas. Animal manure packs or mounding within the animal holding area of an animal feedlot that are managed according to MR 7020.2000, are not manure storage areas.
- t. **MPCA.** The Minnesota Pollution Control Agency.
- u. **New animal feedlot.** An animal feedlot or manure storage area that is constructed, established, or operated at a site where no animal feedlot or manure storage area existed previously, or that existed previously but has been unused for five years or more.
- v. **National Pollutant Discharge Elimination System (NPDES) Permit.** A permit issued by the MPCA for the purpose of regulating the discharge of pollutants from point sources including animal feedlots.
- w. **NRCS.** The Natural Resources Conservation Service of the United States Department of Agriculture.
- x. **Open lot.** An outdoor enclosure intended to confine livestock where manure will accumulate and vegetation cannot be maintained. This definition does not include pastures.
- y. **Ordinary high-water level.** The boundary of public waters and wetlands, and the elevation delineating the highest water level that has been maintained for a sufficient period of time to leave evidence upon the landscape, commonly that point where the natural vegetation changes from predominantly aquatic to predominantly terrestrial. For watercourses, the ordinary high-water level is the elevation of the top of the bank of the channel. For reservoirs and flowages, the ordinary high-water level is the operating elevation of the normal summer pool.
- z. **Pasture.** Grazing areas or agricultural land, including winter feeding areas, where the concentration of animals allows a vegetative cover to be maintained during the growing season, except that vegetative cover is not required in the immediate vicinity of supplemental feeding or watering devices or in associated corrals or chutes where livestock are gathered for the purpose of sorting, providing veterinary services, loading and unloading trucks, and other necessary activities related to livestock production.
- aa. **Platted subdivision.** For the purposes of this section, “platted subdivision” shall include any tract with three or more dwelling units per 40 acres.
- bb. **Pollution hazard.** An animal feedlot or manure storage area that:
 - i. Does not comply with the requirements of Minnesota Rules Chapter 7020.2000 to 7020.2225 and that has not been issued an SDS or NPDES permit establishing an alternative construction operating method; or
 - ii. Presents a potential or immediate source of pollution to waters of the state

as determined by inspection by the County Feedlot Officer after taking into consideration the following:

1. The size of the animal feedlot or manure storage area;
 2. The amount of pollutants reaching or that may reach waters of the state;
 3. The location of the animal feedlot or manure storage area relative to waters of the state;
 4. The means of conveyance of animal manure or process wastewater into waters of the state;
 5. The slope, vegetation, rainfall, and other factors affecting the likelihood or frequency of discharge of animal manure or process wastewater into waters of the state.
- cc. **Sensitive area.** As defined in MR 4410.4300, Subp. 29. Sensitive Areas include shorelands; delineated floodplains (along Red River only includes 1,000 feet from bank); federal, state or local wild and scenic river districts; within 1,000 feet of a karst feature (sinkhole, cave, disappearing spring, resurgent spring, karst window, dry valley or blind valley); within 1,000 feet of a fen, spring or flowing well; sites listed on the Clay County Biological Survey; vulnerable parts of delineated drinking water supply management areas; and those areas having a “very high” sensitivity rating to pollution as shown on Plate 4 of 4, “Sensitivity of Surficial Aquifers to Pollution” from the MN DNR Regional Hydrogeologic Assessment Southern Red River Valley, Minnesota, 2000.
- dd. **Sensitive area water-supply well.** A well with less than 50 feet of watertight casing, and which is not cased below a confining layer or confining materials of at least 10 feet in thickness.
- ee. **State Disposal System (SDS) Permit.** A State permit that is processed in accordance with Minnesota Rules Chapter 7001.
- ff. **Waters of the state.** All streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems, drainage, systems, and all other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through, or border upon the state or any of its portions.

5. Feedlot Permitting Standards.

- a. **Responsibility.** The landowner, feedlot owner, and operator of a proposed or existing feedlot are responsible for complying with the provisions of this section.
- b. **Administrative Permits.** An Administrative Permit is required for any new feedlot with 10-49 units that is located outside of shoreland areas.
- c. **Conditional Use Permits.**
 - i. **Conditional Use Permit Requirements.** A Conditional Use Permit is required for all new feedlots and feedlot expansions, which shall be

subject to the following standards:

1. The minimum setback requirements of 8-8-2(A)(6).
 2. The manure management standards of 8-8-2(A)(8).
 3. All regulations and standards of Minnesota Administrative Rules, Chapter 7020, as amended. See MR 7020 for permit application submittal requirements and review procedures.
 4. Any additional conditions that the Planning Commission or County Board considers necessary to protect the public health, safety, and general welfare.
- ii. **Conditional Use Permit Amendment.** Feedlot operators shall report any change in operation, as defined herein, or change in ownership to the County Feedlot Officer. Any change involving structural alterations, enlargement, or similar change not specifically permitted in the Conditional Use Permit shall be considered a new application, unless the Zoning Administrator and Planning Commission determines the change to be inconsequential, following which the existing Conditional Use Permit may be amended.
- iii. **On-site Review.** To ensure compliance with this section, the County Feedlot Officer may conduct on-site review of feedlots in the following circumstances:
1. When a new Conditional Use Permit application is received.
 2. When the County Feedlot Officer receives a written notice of a potential violation of 8-8-2(A) (*Animal Feedlots*). If a violation is determined to exist, the County Feedlot Officer shall require corrective measures to be implemented and may conduct subsequent visits to determine that such measures are implemented.
 3. On a random basis of the permitted feedlots each year.
- iv. **Documentation.** The County Feedlot Officer shall complete a written review of the feedlot operation each time an on-site review is conducted. A copy of the review shall be provided to the feedlot operator and owner to the mailing address provided on the feedlot permit within 30 days of the on-site visit.
- v. **Registration with the Minnesota Pollution Control Agency.** All feedlots shall be registered with the MPCA in accordance with Minnesota Administrative Rules, Chapter 7020. Feedlot operators must notify the Clay County Feedlot Officer and the Clay County Planning Department that they are registered with the MPCA within five (5) days of registration.
- vi. **Environmental Assessment Worksheet.** An Environmental Assessment Worksheet (EAW) is mandatory for proposed feedlots over 1,000 animal units, or over 500 animal units in a sensitive area as defined in MR

4410.4300, Subp. 29. Feedlot operators shall submit a copy of their EAW to the County Feedlot Officer within five days of submitting their worksheet(s) to the MPCA.

- vii. **Violations.** All permitted feedlots shall conform to the requirements of this section. Any use, arrangement, or construction in conflict with an authorized permit shall be deemed a violation of the Ordinance and shall be punishable as provided in 8-11-12 (*Violation, Penalties, and Enforcement*).

6. Setback Requirements.

- a. **Animal Feedlot Setback Requirements.** All new and expanded feedlots shall adhere to the setback requirements established in *Table 8-2 (Required Setbacks for Animal Feedlots)*, below, as measured from the nearest point of the feedlot boundary to the setback feature. Right-of-way setbacks shall be measured from the roadway centerline. Setbacks are reciprocal in that new development shall not be permitted to encroach within the setbacks of established feedlot, except in the following circumstance:
- i. **Residential Exception.** The required setback from neighboring residential dwellings may be waived by any property owner wishing to build a residence. Consent to waiver shall be documented in a Land Use notice to run with the property.

Table 8-2. Required Setbacks for Animal Feedlots

Setback Feature	Tier I (10-49 AU)	Tier II (50-999 AU)	Tier III (1,000+ AU)
Front, side, and rear lot lines of property containing animal feedlot	100 feet	100 feet	100 feet
Neighboring residential dwelling under separate ownership*	500 feet	1,320 feet (1/4 mile)	2,640 feet (1/2 mile)
Incorporated community*	1/2 mile	1 mile	2 miles
Platted subdivision*	500 feet	1,320 feet (1/4 mile)	2,640 feet (1/2 mile)
Churches and schools	1,320 feet (1/4 mile)	2,640 feet (1/2 mile)	1 mile
OHWL of protected waters and protected waters wetlands	1,000 feet	1,000 feet	1,000 feet
OHWL of stream or river	300 feet	300 feet	300 feet

Setback Feature	Tier I (10-49 AU)	Tier II (50-999 AU)	Tier III (1,000+ AU)
Wetland types 3, 4, and 5 that are not protected waters wetlands	300 feet	300 feet	300 feet
State park	500 feet	1,320 feet (1/4 mile)	2,640 feet (1/2 mile)
Campgrounds	500 feet	1,320 feet (1/4 mile)	2,640 feet (1/2 mile)
ROW of Federal, State, or County highway or Township road	125 feet	125 feet	125 feet
*Note: The required setback from dwellings, incorporated communities, and platted subdivisions may be reduced by up to 25% for confined animal feedlots.			

- b. **Manure Storage Setback Requirements.** All new and expanded feedlot must comply with the water-supply well isolation standards of Minnesota Rules, Chapter 4725, via the following:
- Unroofed animal feedlots with 300 or more animal units shall be 100 feet from a water supply well.
 - Unroofed animal feedlots with fewer than 300 animal units shall be 50 feet from a water supply well.
 - Liquid manure storage basins or lagoons unpermitted or noncertified shall be at least 300 feet from a water-supply well.
 - Liquid manure storage basins or lagoons with approved earthen liner shall be at least 150 feet from a water-supply well.
 - Liquid manure storage basins or lagoons with approved concrete or composite liners shall be at least 100 feet from a water-supply well.
 - Solid manure storage areas which are unroofed shall be at least 100 feet from a water-supply well.
 - All aforementioned setbacks shall be at least double the indicated distance to a sensitive area water-supply well.

7. Standards for Feedlots within Shoreland Districts.

- Existing Feedlots.** Existing feedlots are permitted to operate in shoreland districts, provided they comply with the requirements of this section.
- New Feedlots.** New feedlots are prohibited in shoreland districts and in bluff impact zones.
- Modifications and Expansions.** No feedlot is allowed to expand to a capacity of 1,000 animal units or more within a shoreland district. Modifications or expansions to existing feedlots that are located within 300 feet of the ordinary high-water level or within a bluff impact zone are allowed if they do not further encroach into the existing ordinary high-water level setback or encroach on bluff

impact zones and if the feedlot operator obtains a feedlot permit.

8. Management of Animal Manure.

- a. **Manure Storage setbacks.** Animal manure produced by an animal feedlot or stable facility shall meet the setback requirements of 8-8-2(A)(6).
- b. **Manure Storage Design Standards.** All new liquid manure holding structures for animal manure shall have a minimum capacity of 13 months and shall meet the minimum construction standards required by the MPCA. Animal water earthen storage basins and lagoons shall comply with MPCA requirements. All plans for earthen storage basins and lagoons shall be prepared and approved by a registered professional engineer or NRCS job authority.
- c. **Transportation of Manure.** The owner or operator of an animal feedlot who spills Manure on a public road shall be responsible for cleaning the roadway as soon as practical after a spill to ensure the safe passage of traffic. If the owner or operator of a feedlot does not clean the roadway in a timely manner, the County Highway Department may clean the roadway with their own equipment and assess the owner or operator for their services. If the assessment is not paid, the County Board of Commissioners may certify to the County Auditor by November 30 all unpaid, outstanding assessments, and a description of the lands against which the assessment arose. It shall be the duty of the County Auditor, upon order of the County Board of Commissioners, to extend the assessments with interest not to exceed the interest rate provided for in Minnesota Statutes, Section 279.03, Subd. 1, upon the tax rolls of the County for the taxes of the year in which the assessment is filed, into the tax becoming due and payable in January of the following year and shall be enforced and collected in the manner provided for the enforcement and collection of real and/or personal property taxes in accordance with the provisions of the laws of the State of Minnesota. The assessment, if not paid, shall become delinquent and be subject to the same penalties and the same rate of interest as the taxes under the general laws of the State of Minnesota.
- d. **Manure Spreading.** All utilization of animal manure as fertilizer shall be applied in accordance with State guidelines and in the most agronomically efficient manner using best management practices.
- e. **Manure Management Plan.** A Manure Management Plan is required by the MPCA from all feedlots capable of holding 300 animal units or more. Records of actual Manure application practices are required at all facilities with 100 animal units or more. The Manure Management Plan must contain all elements of MR 7020.2225 and is required to be updated and retained on file at the animal feedlot or the owner/operator's office. If an NPDES permit is required, the Manure Management Plan shall also include the following items.
 - i. Manure storage, handling, and testing practices;
 - ii. Field locations and acreage used for spreading Manure;
 - iii. Field-specific nutrient management; and

- iv. Management of sensitive areas.

9. Feedlot Closure and Abandonment.

- a. **Closure.** The owner or operator of an animal feedlot shall be responsible for the ongoing management of Manure and the final closure of the feedlot including the cleaning of structures and the emptying and proper disposal of manure from all manure storage structures. The closure shall be completed in accordance with the MPCA's Guidelines for closure. Landowners, individual feedlot owners, operators or other business entities controlling, taking part in, or sharing in the profits from a feedlot will be liable for cleanup costs if the closure provisions of this Ordinance are not complied with.
- b. **Abandonment.** Owners and operators of animal feedlots shall have joint liability for cleanup, closure, or remediation of abandoned feedlot sites. Cleanup costs after abandonment, if not otherwise paid, shall be assessed to the fee title holder.

10. Nonconforming Feedlots. All nonconforming feedlots in operation as of the effective date of this Ordinance may continue, but they will be managed according to 8-1-8 (*Nonconformities*) of and other applicable local, state, and federal statutes regarding additions, repairs after damage, and discontinuance of use. A nonconforming use shall not be deemed to be discontinued or abandoned for a reasonable period between tenants or ownership, not to exceed five years.

11. Variances. All construction, additions, or expansions to the exterior dimensions of existing nonconforming feedlots within the setbacks as defined by this Section must be authorized by a variance.

B. Agricultural Service Establishments.

- 1. **Setbacks.** All structures and activities (outdoor storage, corrals, etc.) associated with the agricultural service establishment shall be located at least 500 from any dwelling.
- 2. **Access.** Roadway access spacing shall conform with the standards of 8-9-2 (*County Roadway Access Standards*).
- 3. **Compatible with Agriculture.** The use shall not be one to which the noise, odor, dust or chemical residues of commercial agriculture or horticulture might result in creation or establishment of a nuisance or trespass.

C. Agricultural Tourism.

1. Permitting and Licensing.

- a. **Interim Use.** Agricultural tourism shall be processed as an interim use meeting the requirements of this section in addition to the general requirements for an Interim use Permit.
- b. **Interim Use Permit Review.** The Planning Department shall review and inspect the Interim Use Permit at least once every five (5) years for compliance with conditions.
- c. **Development Permits.** The facility must receive the appropriate permits for any new structure or addition to any existing structure, proposed sewage treatment

system systems, and proposed restroom facilities.

- d. **Licenses.** The facility must receive all Federal, State, and local licenses required for operation including food, beverage and lodging licenses as necessary.
2. **Application Requirements.** A Site Plan shall be submitted with the Interim Use Permit application showing the location and proposed use of all existing and planned structures, parking, well, sewage treatment system, and agricultural tourism activity locations.
3. **Location.** Agricultural tourism uses shall not be located in platted subdivisions. Agricultural tourism activities should primarily be conducted outside, though they may be located within a primary dwelling or in separate residential, non-residential, or farm buildings. All structures to be associated with the activity must be included in the Site Plan.
4. **Minimum Lot Area.** The minimum lot area for a lot containing an agricultural tourism activity shall be the minimum lot size for the zoning district it is within.
5. **Setbacks.** Any structures associated with an agricultural tourism activity must be located at least 250 feet from a residential structure located on adjacent property.
6. **Sign.** One non-illuminated sign only of a maximum size of forty (40) square feet is allowed to advertise the agricultural tourism use on site. Such sign shall meet the setbacks for structures for the district within which the use is located.
7. **Parking.** The required number of parking spaces may be determined in consultation with the Planning Commission.
8. **Performance Standards.**
 - a. **No Adverse Effects.** No equipment or processes used at an agricultural tourism activity shall create noise, vibration, glare, fumes, odors or electrical interference that could create a nuisance off the premises.
 - b. **Traffic and Roads.** Traffic generated by the use shall not exceed that which is reasonable for such a use in the area in which it is located and for the road adjacent to the use. If necessary, application of dust control may be required as a condition of the permit.
 - c. **Utilities.** The agricultural tourism use shall not create usage exceeding the capacity of the available on-site sewage treatment system and drinking water capacity.
 - d. **Buffering.** Buffering may be required by the Planning Commission to minimize adverse effects to adjacent properties and roadways.

D. Temporary Agricultural Employee Housing.

1. **Location.** Agricultural employee housing shall be allowed only in the Agricultural General Zoning District and not in cluster subdivisions.
2. **Size and Configuration.** Agricultural employee housing facilities shall include no more than four (4) attached dwelling units or sixteen (16) beds in group living quarters. Where agricultural worker housing consists of a combination of both individual dwelling units

and group living quarters, each dwelling unit shall count as three (3) beds toward the maximum of sixteen (16) beds in group living quarters.

3. **Facilities.** Sleeping, eating, and sanitation facilities consistent with Clay County Environmental Health regulations shall be provided within each unit or within the same building for group living quarters. Parking must be consistent with Clay County parking standards.
4. **Site Requirements and Setbacks.** Agricultural employee housing facilities shall meet the residential setback requirements of the Agricultural General Zoning District. Agricultural employee housing facilities shall be set back a minimum of 1,320 from adjacent residential dwellings not associated with the facility.
5. **Density.** Agricultural employee housing facilities permitted under 8-8-2(D) shall not be considered in the calculation of any residential density determination required by this Ordinance.
6. **Occupancy.** A signed statement shall be submitted with the Interim Use Permit application that such housing shall be used only for agricultural employee housing and shall not be rented to individuals not employed in the agricultural operation. All agricultural employee housing facilities shall be occupied exclusively by agricultural employees and their family members for a maximum of 270 days per calendar year. Documentation that any agricultural employee housing was occupied by agricultural employees shall be provided to the Zoning Administrator upon request.
7. **Discontinuance of use.** If agricultural employee housing ceases to be occupied by agricultural employees for more than two (2) consecutive calendar years, such housing and ancillary facilities shall be removed from the property or converted to a nonresidential use within one (1) year.

8-8-3. Residential Uses

A. Two-Family Dwellings.

1. **Location.** Two-family dwellings shall be allowed only in approved major subdivisions in the AG, General Agricultural District and shoreland Zoning Districts (SP and RD).
2. **Facilities.** Two-family dwellings shall have shared sewage treatment system and drinking water facilities.

B. Manufactured Homes.

1. **Single-Family Dwelling.** Manufactured homes are permitted as a type of single-family dwelling in all districts that allow single-family dwellings and shall conform to the requirements of 8-8-3(B) and to all applicable sections of this Ordinance regarding single-family dwellings.
2. **Manufactured Home Parks Prohibited.** Manufactured home parks are not permitted in any zoning district within the County.
3. **Foundation, Anchoring, and Skirting.** Manufactured homes shall be placed upon a permanent foundation for the entire perimeter of the manufactured home or shall be anchored and skirted to meet the requirements of Minnesota Rules, Chapter 1350.

4. **Manufactured Homes in Flood Hazard Districts.** Manufactured homes are permitted in Flood Hazard Districts, subject to the provisions of 8-8-3(B) and *Chapter 8-3 (Flood Hazard Districts)*.

C. Supervised Living Facility

1. **Dwelling Type.** A Supervised residential facility must be located within an existing detached single-family dwelling or, if a new facility, in a dwelling meeting the density provisions of this Ordinance.
2. **Licensing.** Supervised living facilities shall meet all state and federal licensing requirements, as defined by Minnesota Rules Chapter 4665.

D. Intentional Communities.

1. **Interim Use.** Intentional Communities shall be processed as an interim use, meeting the requirements of this section in addition to the general requirements for an Interim Use Permit. A Site Plan shall be submitted with the Interim Use Permit application showing the location of all existing structures and uses on the lot(s).
2. **Application Submittals.** In addition to the Interim Use Permit application, the applicant(s) for an intentional community shall submit the following:
 - a. **Site Plan.** A Site Plan showing the location of all dwellings, common structures and other uses incidental to residential, sewage treatment systems, and other items as may be requested by the Zoning Administrator.
 - b. **Management Plan.** Intentional Communities shall be self-managed by an incorporated organization consisting of a majority of the residents or owners. This organization shall submit a management plan that includes the following:
 - i. A description of all uses to occur with the intentional community.
 - ii. Guidelines for the maintenance and operations of any transportation infrastructure that might be utilized by the general public, and any private utilities including drinking water, stormwater, and sewage treatment systems.
 - iii. A statement acknowledging an understanding that changes to the management plan or Site Plan may trigger an environmental review under Minnesota Rules 4410.
3. **Minimum Design Requirements.** An intentional community shall consist of at least one (1) residential structure or two (2) residential dwelling units, and a centrally located common structure, such as a meeting house or community hall, that is detached from all dwellings.
4. **Minimum Lot Area.** The minimum lot area for an intentional community shall be 40 acres.
5. **Maximum Density.** There shall be no more than seven (7) dwelling units per acre. No residential structure shall contain more than four (4) dwelling units.
6. **Open Space.** Any lot containing an intentional community use shall have at least 50

percent of land dedicated as open space.

7. **Non-Residential Uses.** All non-residential uses on Lots that occur in combination with an Intentional Living Community are subject to the requirements of the Clay County Land Development Ordinance.

8-8-4. Commercial and Industrial Uses

A. General Requirements.

1. **Access Management Plan.** An access management plan shall be required for any commercial or industrial use that is proposed to be located adjacent to Highway 10, Highway 336, Highway 9, Highway 32, Highway 34, or Interstate 94. The access management plan may be requested with any application for subdivision, rezoning, or Conditional Use Permit, and shall conform to the access management requirements in 8-9-2 (*County Roadway Access Standards*).
2. **Environmental Mitigation.** Proposed commercial and industrial uses shall avoid environmentally sensitive areas and ensure mitigation measures are taken whenever there is a potential adverse impact.
3. **Nuisance and Trespass.** Commercial and industrial uses shall not create a nuisance or encourage trespass to adjacent agricultural or residential properties.
4. **Site Plan.** A detailed Site Plan shall be required for any proposed commercial or industrial use. The Site Plan shall contain the following elements:
 - a. **Property Boundary.** Clearly marked boundaries and acreage of the site.
 - b. **Existing structures.** Location, type, and dimensions of all existing buildings and structures.
 - c. **Proposed structures.** Location, type, dimensions, and height of all proposed buildings and structures.
 - d. **Setbacks.** Distances from property lines to existing and proposed structures.
 - e. **Parking and Driveways.** Location, dimensions, and materials for driveways and parking areas.
 - f. **Signage.** Location and dimensions of all existing and proposed signs.
 - g. **Outdoor Lighting.** Location of all outdoor lighting, especially if adjacent to residential areas.
 - h. **Landscaping.** Location and type of existing and proposed landscaping elements (e.g., trees, shrubs).
 - i. **Utilities.** Location of utilities such as wells, septic systems, and utility lines.
 - j. **Easements.** Areas where others have the right to use the property (e.g., utility access).
 - k. **Access Points.** Locations of entrances and exits for vehicles and pedestrians.
 - l. **Topography.** Contour lines to show elevation changes and drainage patterns.

- m. **Natural Features.** Locations of existing natural features (e.g., wetlands, river and streams) on the property.
- n. **Impervious Surfaces.** Areas covered by non-porous materials including but not limited to asphalt, concrete, and compacted gravel, impacting stormwater management.
- o. **Stormwater management.** stormwater management features.

B. Adult Entertainment Uses

- 1. **Application Submittals.** A Site Plan shall be submitted with the Conditional Use Permit application meeting the requirements of 8-8-4(A)(4).
- 2. **Setbacks.** Adult entertainment uses shall be set back a minimum distance of 500 feet from any residence, day care, public park or playground, church, school, or other adult entertainment use as measured in a straight line between the closest property boundary points.
- 3. **Maximum Floor Area.** A structure housing an adult entertainment use shall be no larger than 10,000 square feet.
- 4. **Performance Standards.**
 - a. **Color and Display.**
 - i. The colors of the exterior of structures where adult entertainment uses occur shall be muted and blend with surrounding structures, and shall not be neon, bright or multi-colored.
 - ii. Sexually explicit matter shall not be displayed on signs, window displays, or the exterior of any structure.
 - b. **Hours of Operation.** The hours of operation shall be set in the Conditional Use Permit and shall not have an adverse impact on adjacent property owners.
 - c. **Alcohol Prohibited.** Alcoholic beverages shall not be consumed or sold anywhere on the property.

C. Private Airport.

- 1. **Application Submittals.** A Site Plan shall be submitted with the Conditional Use Permit application meeting the requirements of 8-8-4(A)(4).
- 2. **Performance Standards.** Private airports shall comply with the following performance standards:
 - a. Measures shall be taken to reduce adverse effects from blowing dirt and debris on facilities and approach zones.
 - b. Safeguards shall be taken to minimize any nuisance on adjacent property.

D. Extractive Uses.

- 1. **Requirements for all Extractive Uses.** Any new extractive use, as well as the resumption of any extractive use that has ceased operation for a period of 12 months or longer, shall conform with the following requirements, regardless of whether the use

meets the criteria for administrative approval, as defined in 8-8-4(D)(2), or requires an Interim Use Permit, as outlined in 8-8-4(D)(3).

- a. **Setbacks.** structures, storage of excavated materials, and the excavation edge shall be set back the following minimum distances:
 - i. 100 feet from lot lines, unless the Planning Department is notified and a written notarized agreement between the operator and the adjacent landowner is filed with the County Recorder's office.
 - ii. 200 feet from the right-of-way of existing roads and highways.
 - iii. 500 feet from dwellings, schools, churches, public or commercial uses.
 - iv. 300 feet from the ordinary high-water level of a public river or stream and 1,000 feet from the ordinary high-water level of a public lake.
 - v. The operation shall be completely located outside of the 100-year floodplain.
- b. **Performance Standards.** The following conditions shall be required during site operation:
 - i. Planting, fencing, or berm-ing shall be provided in areas where extractive uses are adjacent to public roads or residential uses. Sight-obscur-ing screening may be required between mined areas and adjacent residential property within 300 feet of the excavation area boundary.
 - ii. Excavation areas shall be maintained to avoid caving or sliding banks.
 - iii. Excavation areas shall be properly drained, filled, and leveled throughout operation.
 - iv. Runoff from the site shall be restricted from waterbodies and adjacent properties.
 - v. All equipment shall be maintained and operated in a manner that minimizes noise and vibration to the greatest extent possible. Noise levels shall never exceed the acceptable locational thresholds established by the Minnesota Pollution Control Agency (MPCA).
 - vi. The extractive use shall maintain a plan for dust control during operations.
 - vii. The owner/operator shall maintain all roadways within the excavation site and the haul road from the site to the nearest paved Highway. Spillage of material on any roadway shall be removed by the owner/operator as quickly as possible.
 - viii. Adequate signage shall be maintained for public safety, such as "Trucks Hauling" signs.
 - ix. Areas where topsoil is removed shall be reseeded within 30 days of removal of topsoil.

2. **Administrative Use.**

- a. **Purpose.** The administrative approval process is intended to allow for limited extractive use operations. The Administrative Permit shall not be used to allow exploration in anticipation of further extraction in subsequent years, nor shall it be used to extract minerals incrementally if successive expansions would require an Interim Use Permit.
- b. **Criteria.** The Zoning Administrator may only approve an extractive use if it meets the following requirements:
 - i. **Location.** The extractive use is not located in an RP-BIO District.
 - ii. **Maximum Area.** The maximum area for all extraction areas does not exceed 10 acres.
 - iii. **Performance Standard.** The extractive use shall not include on-site crushers, asphalt plants, or other on-site processing of extracted materials.
 - iv. **Duration.** The duration of the extractive use does not exceed one (1) year. If the duration of use exceeds one year, the landowner shall be barred from obtaining a permit for any type of extractive use for a period of five (5) years.
- c. **Application Submittals.** The application for an Administrative Permit for an extractive use shall include the following:
 - i. **Agreement of Surrounding Landowners.** Signed, notarized agreements from all owners of land within one-quarter (1/4) mile of the proposed boundary of the extractive use area stating their agreement in allowing the proposed use.
 - ii. **Project Information.**
 - 1. Name, phone number, and address of the owner of land where the use is proposed;
 - 2. Name, phone number, and address of the proposed operator of the Extractive use if different than the landowner;
 - 3. GIS data showing the proposed boundary of the Extractive use, including all activities associated with the operation;
 - 4. The proposed daily times of operation and months in which the operation will be active;
 - 5. Proposed hauling routes and estimated number of daily truck trips;
 - 6. An Access Plan approved by the appropriate road authority, with access limited to one point of ingress/egress.
 - iii. **Reclamation Plan.** A plan and timeline for reclaiming the site after materials are extracted. At the time of closure, a dike shall be installed along the edge of the mining pit of sufficient height to prevent all surface water runoff from entering the mining pit.

- iv. **Financial Surety.** As a condition of granting the permit, the County shall require the owner or operator to post a bond, cash deposit, letter of credit, or other financial surety in such form and sum as the County shall determine, with sufficient surety running to the County, conditioned to pay the County the cost and expense of repairing, from time to time, any Highways, streets, township roads, or other public ways where such repair work is made necessary by the special burden resulting from hauling and travel, in removing materials from any pit, excavation, or impounded waters, the amount of such cost and expense to be determined by the County Engineer; and conditioned further to comply with all the requirements of this Ordinance and the particular permit, and to pay any expense the County or a township may incur by reason of doing anything required to be done by any applicant to whom a permit is issued, including the cost of required reclamation.
3. **Interim Use.** Any extractive use that does not meet the criteria of 8-8-4(D)(2)(b), above, may only be permitted with an Interim Use Permit, subject to the following standards.
- a. **Application Requirements.** A map of the proposed pit or excavation shall be prepared and filed with the application showing the confines or limits thereof, together with a plan indicating the topography and overall condition of the site after the extraction is completed.
 - b. **EAW in RP-BIO District.** An application for an extractive use in a Resource Protection – Biologically Significant Areas District shall include an Environmental Assessment Worksheet or Environmental Impact Statement conforming to the requirements of the Minnesota Environmental Policy Act of 1973 and Minnesota Administrative Rules Chapter 4410.
 - c. **Required Permit Conditions.** An Interim Use Permit for an extractive use shall require the following conditions:
 - i. Provide a plan, with timeline, for reclaiming the site after materials are extracted. At the time of closure, a dike shall be installed along the edge of the mining pit of sufficient height to prevent all surface water runoff from entering the mining pit.
 - ii. Provide adequate planting, fencing, or berm-ing in areas where extractive uses are adjacent to public roads or residential uses.
 - iii. During operation, keep any excavation in such condition as not to be dangerous from caving or sliding banks.
 - iv. Properly drain, fill, or level any excavation, after created, so as to make the same safe and healthful.
 - v. Restrict runoff from the site to lake, rivers, streams, or adjacent properties.
 - vi. Maintain and operate all equipment in a manner that minimizes noise and vibration to the greatest extent possible. Noise levels shall never exceed the acceptable locational thresholds established by Minnesota

Administrative Rules 7030.

- vii. Provide a plan for dust control on haul roads and within mining areas during operations.
 - viii. Provide an Access Plan with approval of the access sites from the appropriate authority.
 - ix. Access shall be limited to one entrance and exit to the site.
 - x. Provide a plan for truck hauling on roads of adequate capacity. The owner/operator shall maintain all roadways within the excavation site and the haul roads from the site to the nearest paved Highway. Spillage of material on any roadway shall be removed by the owner/operator as quickly as possible.
 - xi. Provide adequate signage for public safety, such as “Trucks Hauling” signs.
 - xii. Reseed areas where topsoil is removed within thirty (30) days of removal of topsoil.
- d. **Setbacks.** All extraction, associated uses, and structures, with the exception of haul Roads, shall adhere to the following setbacks:
- i. 100 feet from lot lines, unless the Planning Department is notified and a written notarized agreement between the operator and the adjacent landowner is filed with the County Recorder’s office.
 - ii. 200 feet from the right-of-way of existing public roads and highways.
 - iii. 500 feet from any dwelling, school, church, public or commercial establishment.
 - iv. 300 feet from the ordinary high-water level of a public river or stream and 1,000 feet from the ordinary high-water level of a public lake.
 - v. 100 feet from land zoned Resource Protection – Biologically Significant Areas.
 - vi. The operation shall be completely located outside of the 100-year floodplain.
- e. **Financial Surety.** As a condition of granting the permit, the County shall require the owner or operator to post a bond, cash deposit, letter of credit, or other financial surety in such form and sum as the County shall determine, with sufficient surety running to the County, conditioned to pay the County the cost and expense of repairing, from time to time, any Highways, streets, township roads, or other public ways where such repair work is made necessary by the special burden resulting from hauling and travel, in removing materials from any pit, excavation or impounded waters, the amount of such cost and expense to be determined by the County Engineer; and conditioned further to comply with all the requirements of this Ordinance and the particular permit, and to pay any expense the County or a township may incur by reason of doing anything required

to be done by any applicant to whom a permit is issued, including the cost of required reclamation.

E. Asphalt Batch Plants and Ready-Mix Cement Plants.

1. **Application Submittals.** A Site Plan shall be submitted with the Interim Use Permit application meeting the requirements of 8-8-4(A)(4).
2. **Location.** Asphalt batch plants, Ready-Mix cement plants, and associated processing facilities and structures should be located, to the greatest extent possible, downwind from any inhabited residential structure located within one-quarter (1/4) mile of the proposed site.
3. **Setbacks.** Asphalt batch plants, Ready-Mix cement plants, and associated processing facilities and structures shall set back the following minimum distances:
 - a. 100 feet from Lot Lines.
 - b. 200 feet from the right-of-way line of the nearest road or highway.
 - c. 1,000 feet from dwellings, schools, churches, public uses, or commercial uses.
4. **Financial Surety.** As a condition of granting the permit, the County shall require the owner or operator to post a bond, cash deposit, letter of credit, or other financial surety in such form and sum as the County shall determine, with sufficient surety running to the County, conditioned to pay the County the cost and expense of repairing, from time to time, any Highways, streets, township roads, or other public ways where such repair work is made necessary by the special burden resulting from hauling and travel, in removing materials from any pit, excavation or impounded waters, the amount of such cost and expense to be determined by the County Engineer; and conditioned further to comply with all the requirements of this Ordinance and the particular permit, and to pay any expense the County or a township may incur by reason of doing anything required to be done by any applicant to whom a permit is issued, including the cost of required reclamation.

F. Precast Concrete Plants.

1. **Application Submittals.** A Site Plan shall be submitted with the Conditional Use Permit application meeting the requirements of 8-8-4(A)(4).
2. **Setbacks.** All structures associated with a precast concrete plant must be located at least 1,000 feet from a dwelling located on adjacent property.
3. **Permit Review.** All permitted precast concrete plants shall be reviewed and inspected by the Planning Department at least every five (5) years for compliance with conditions.

G. Vehicle and Equipment Sales.

1. **Application Submittals.** A Site Plan shall be submitted with any application for Interim Use Permit or Development Permit meeting the requirements of 8-8-4(A)(4).
2. **Licensing.** If five or more vehicles are to be sold in a one-year period, a state dealer license is required.
3. **Setbacks.** Vehicles and trailers on display must be a minimum of 5 feet from the edge of

the road right-of-way and must not obstruct the views of the traveling public.

4. Performance Standards.

- a. **Nuisance Abatement.** The use must not establish a nuisance in the form of noise, vibration, glare, fumes, odor, lighting, or electrical interference detectable off premise.
- b. **Service and Repair.** All vehicle service and repair work must occur indoors.
- c. **Storage.** Vehicles and parts not displayed for sale must not be stored outdoors.
- d. **Screening.** Vehicles on display must be screened from adjacent dwellings.

H. Salvage Yards.

1. **Application Submittals.** A Site Plan shall be submitted with the application for Conditional Use Permit meeting the requirements of 8-8-4(A)(4).
2. **Setbacks.** A salvage yard shall be separated a minimum of 1,000 feet from any dwelling, school, church, or another salvage yard, as measured in a straight line between the closest property boundary points.
3. **Screening.** The salvage yard shall be enclosed on all sides by a sight-obscuring fence to a minimum height of eight (8) feet above grade or by other opaque screening material which fully blocks the view of the salvage yard from adjacent properties. Salvage materials shall not be stacked above the height of the fence.

I. Kennels.

1. Shoreland and Floodplain Restrictions.

- a. Structures or waste management areas associated with a Kennel shall be elevated at or above the Regulatory Flood Protection Elevation (RFPE).
- b. Any kennel proposed to be in a shoreland district for a river or stream shall be located in a structure that existed prior to the effective date of this Ordinance and shall be set back from the ordinary high-water level as specified under 8-8-4(I)(4), below.

2. Minimum Lot Area. The minimum lot Area for a kennel is two (2) acres.

3. Minimum Road Frontage. The minimum frontage required for a kennel is 250 feet of continuous frontage on a public road right-of-way.

4. Setbacks.

- a. All kennel operations, including waste management areas and outdoor runs/exercise areas, shall be set back the following minimum distances:
 - i. 100 feet from all wells in accordance with the state well code Minnesota Rules Chapter 4725, herein adopted by reference.
 - ii. 100 feet from all adjoining lot lines, except that kennels may be set back 50 feet from any property lines that abut state or federal properties.
 - iii. 150 feet from the ordinary high-water level of a river or stream.

- iv. 300 feet from the ordinary high-water level of a lake or basin.
- b. The Planning Commission, at its discretion, may impose additional setbacks on new kennel operational areas on a case-by-case basis upon the review of each Interim Use Permit request. In creating the Site Plan, the greatest distance from neighboring residences shall be considered by the applicant, encouraging a minimum setback distance of 600 feet from the closest dwelling.

5. Performance Standards.

- a. **Buffer Strip.** A vegetative buffer strip, 100 feet in width, shall be established and maintained between any part of the kennel area and any protected waters, wetlands, or officially designated drainage ways that lead to protected waters. The width of the buffer strip may be increased by the Planning Commission after considering the slope of the property, its proximity to protected waters, and any lake/river classification. Please reference the Clay County Soil and Water Conservation District and NRCS for buffer strip best management practices and technical standards.
- b. **Noise Standards.** Noise standards shall be enforced in conformance with Minnesota Pollution Control Agency Rules Chapter 7030, herein adopted by reference.

6. Application Submittals. All kennel operations require an Interim Use Permit and shall submit a facility operations plan along with the Interim Use Permit application. The facility operations plan shall contain the following information:

- a. Name of kennel operator and landowner, address, phone number, signature and date;
- b. Type of kennel operation (i.e. breeding, boarding, rescue, sled dog, etc.);
- c. kennel capacity, including the number of animals over six months of age to be permanently or temporarily housed on the property;
- d. Waste management plan;
- e. Noise management or mitigation plan; and
- f. Site Plan meeting the requirements of 8-8-4(A)(4), in addition to the following specifications:
 - i. Location of all residences within 600 feet of the proposed kennel area;
 - ii. Location of kennel on the property, including any alternate or temporary sites;
 - iii. Floor plan of kennel structure(s);
 - iv. Setback distances from kennel area to property lines, neighboring homes, wells and any protected public waters and/or wetlands;
 - v. Any existing or proposed vegetative buffer strips;
 - vi. Location of waste management area (i.e. composting site, spreading area

or storage bin); and

vii. Location of any wells and sewage treatment systems.

J. Retreat Centers and Wedding Venues.

1. Permitting and Licensing.

- a. Retreat centers shall be processed as a conditional use meeting the requirements of this section in addition to the general requirements for a Conditional Use Permit.
- b. The Planning Department shall review the Conditional Use Permit according to the procedures in 8-11-7 (*Conditional Use Permits*).
- c. The facility must receive the appropriate Development Permits for any new structures or additions to any existing structures and must receive appropriate permits for all proposed restroom facilities and sewage treatment systems.
- d. The facility must receive all federal, state, and local licenses required for operation, including food, beverage, and lodging licenses, as necessary.

2. **Location.** Retreat centers are prohibited in platted subdivisions. Retreat centers may be located within a primary dwelling or in separate residential, non-residential, or farm building.

3. **Application Submittals.** A Site Plan shall be submitted with the Conditional Use Permit application meeting the requirements of 8-8-4(A)(4).

4. **Minimum Lot Area.** The minimum lot size required for a lot on which a retreat center is permitted shall be 10 acres.

5. **Setbacks.** Any structures associated with a retreat center must be located at least 500 feet from a dwelling located on adjacent property.

6. **Sign.** One (1) non-illuminated sign of a maximum size of 40 square feet is allowed on site. Such sign shall meet the setbacks for structures for the applicable district.

7. **Parking.** The required number of parking spaces may be determined in consultation with the Planning Commission.

8. Performance Standards.

- a. **No Adverse Effects.** No equipment or activity shall create noise, vibration, glare, fumes, odors, or electrical interference that could create a nuisance off the premises.
- b. **Traffic.** Traffic generated by the use shall not exceed that which is reasonable for such a use in the area in which it is located and for the road adjacent to the use. If necessary, application of dust control may be required as a condition of the permit.
- c. **Utilities.** The retreat center shall not create usage exceeding the capacity of the available on-site sewage treatment system and drinking water capacity.
- d. **Buffering.** Buffering may be required by the Planning Commission to minimize

adverse effects to adjacent properties and roadways.

K. Service Businesses in the Urban Expansion District.

1. Permitting Standards.

- a. Service businesses shall be permitted as an interim use in Tier 1 and Tier 2 of the UE, Urban Expansion District, subject to the requirements of this section in addition to the general requirements of 8-11-8 (*Interim Use Permits*).
- b. The Planning Department shall review and inspect the Interim Use Permit shall every five (5) years for compliance with conditions.

2. Application Submittals. A Site Plan shall be submitted with the Interim Use Permit meeting the general requirements of 8-8-4(A)(4).

3. Limitation on Use. Only one interim use is permitted per lot.

4. Location Restrictions. Service businesses must be operated out of existing structures on the property unless expansions or additional structures receive approval from the City of Dilworth or the City of Moorhead.

5. Employee Limitation. The number of allowable employees will be set by the Planning Commission, with considerations for traffic, parking, utilities, and surrounding properties. No business shall have more than 15 full-time equivalents.

6. Sign. One non-illuminated sign of a maximum size of 40 square feet is permitted on site. Such sign shall meet the setback requirements for structures in the UE, Urban Expansion District (Tier 1 and 2) or be a wall sign.

7. Parking. Additional parking spaces may be required by the Planning Commission for the use of clients, deliveries, etc.

8. Performance Standards.

- a. **Adverse Effects.** No equipment or processes used in the service business shall create noise, vibration, glare, fumes, odors or electrical interference detectable off the premises.
- b. **Traffic and Roads.** Traffic generated by the use shall be considered by the Planning Commission, shall not exceed that which is reasonable for the neighborhood, and shall not exceed the capacity of adjacent roads.
- c. **Buffering.** Buffering may be required by the Planning Commission to minimize adverse effects on adjacent properties and roadways.
- d. **Utilities.** Operation of the use shall not exceed the capacity of the available on-site sewage treatment system and water supply. The use shall not prematurely stimulate investment in public utilities in a municipality's future growth area.

L. Storage Units.

1. Application Submittals. A Site Plan shall be submitted with any application for building permit or Conditional Use Permit meeting the general requirements for Site Plans as provided by 8-8-4(A)(4).

2. General Standards.

- a. Storage units must have direct access to a fully maintained road.
- b. The storage structure and surrounding grounds shall be maintained in a clean, orderly, and safe manner. Hazardous materials shall not be stored.
- c. Outdoor storage must meet the standards for storage yards listed in 8-8-7(J).

3. Additional Standards for Storage Units in the Agricultural General District. Storage units must be designed and constructed to resemble agricultural or farm buildings in the vicinity.

4. Additional Standards for Storage Units in the Resource Protection – Wellhead Protection District.

- a. Outdoor storage must meet the standards for storage yards listed in 8-8-7(J). Items containing fuel tanks must be stored on an impervious surface. The Planning Commission may place additional conditions on the number of items stored outdoors.
- b. Storage units must have a concrete floor.
- c. Sewage treatment systems and wells associated with the use are not permitted.
- d. The storage units use must not be of a size that requires a permanent stormwater retention pond.
- e. No more than 30 percent of the lot Area shall be occupied by buildings associated with the use.

M. Cannabis or Lower-Potency Hemp Cultivation, Manufacture and Wholesale, and Retail.

1. General Standards.

- a. **Establishments.** The number of cannabis retail establishments in Clay County is limited to 1 per 12,500 population. A retail establishment must be registered with Clay County prior to operation.
- b. **Licensing.** State licensing, if applicable, is required prior to establishment of the use.
- c. **Nuisance.** The use must not establish a nuisance in the form of noise, vibration, glare, fumes, odor, lighting, or electrical interference detectable off premise.
- d. **Home Occupation.** Cannabis businesses are prohibited as a home occupation.

2. Setbacks. Cannabis businesses are subject to the following setbacks. These setbacks are measured from structures associated with the businesses and are not reciprocal:

- a. 1,000 feet from a school.
- b. 500 feet from a church, daycare, library or a dwelling on an adjacent property.
- c. 500 feet from a residential treatment facility.
- d. 500 feet from a park, playground, or athletic field.

3. **Performance Standards.**

a. **Cultivation.** Cultivation is subject to the following performance standards:

- i. **Cultivation and Operations Plan.** A business licensed or authorized to cultivate cannabis must prepare, maintain, and execute an operating plan and a cultivation plan, which must include but is not limited to:
 1. **Site Plan.** A Site Plan meeting the requirements of 8-8-4(A)(4).
 2. **Security.** Provisions for fencing, lighting, personnel and video monitoring.
 3. **Utilities.** Plans for wastewater, waste disposal; utilities including water and electricity, water usage and recycling.
 4. **Solid Waste.** A plan to destroy all cannabis plant material and cannabis byproduct to render it unusable. Waste material must be stored in a secure location.
 5. **Pest Management.** A pest management protocol that incorporates integrated pest management principles to control or prevent the introduction of pests to the cultivation site.

b. **Manufacture and Wholesale.** Manufacture and Wholesale are subject to the following performance standards:

- i. **Facility and Operations Plan.** A business licensed or authorized to manufacture and wholesale cannabis and cannabis-related products must prepare, maintain, and execute a facility and operations plan, which must include but is not limited to:
 1. **Site Plan.** A Site Plan meeting the requirements of 8-8-4(A)(4).
 2. **Security.** Provisions for fencing, lighting, personnel and video monitoring.
 3. **Utilities.** Plans for wastewater, waste disposal; utilities including water and electricity, water usage and recycling. Wastewater facilities shall be in accordance with MN Statute 342.28 Subd. 3.
 4. **Ventilation and Filtration.** In accordance with MN Statute 342.24 Subd. 4.
 5. **Solid Waste.** A plan to destroy all cannabis plant material and cannabis byproduct to render it unusable. Waste material must be stored in a secure location.

c. **Retail.** Retail sales are subject to the following performance standards:

- i. **Business and Operations Plan.** A retail business licensed or authorized to sell Cannabis and Cannabis related products must prepare, maintain, and execute a business plan, which must include but is not limited to:
 1. **Hours of Operation.** 8:00 a.m. to 9:00 p.m. Monday through

Saturday and 10:00 AM to 9:00 PM Sunday.

2. **Site Plan.** A Site Plan meeting the requirements of 8-8-4(A)(4).
3. **Ventilation and Filtration.** In accordance with MN Statute 342.24 Subd. 4.
4. **Building Conditions:** In accordance with MN Statute 342.27 Subd. 8.
5. **Security.** In accordance with MN Statute 342.27 Subd. 9.
6. **Lighting.** In accordance with MN Statute 342.27 Subd. 10.
7. **Deliveries.** In accordance with MN Statute 342.27 Subd. 11.
8. **Wastewater.** Cannabis mezzobusinesses must comply with MN Statute 342.28 Subd. 3;
9. **Solid Waste.** A plan to destroy all cannabis plant material and cannabis byproduct to render it unusable. Waste material must be stored in a secure location.

8-8-5. Recreational Uses

- A. **Campgrounds.** Campground uses shall conform with the following regulations throughout operation:
 1. The facility shall meet all state and federal license requirements.
 2. No mobile homes shall be allowed in campgrounds.
 3. residential use of camping vehicles, except as permitted for a campground owner or caretaker, shall be prohibited from November 1 to April 1.
- B. **Shooting Ranges.** Shooting ranges shall meet the noise and performance standards in Minnesota Statutes 87A and the requirements of this subsection 8-8-5(B).
 1. **Authorized Activities.** Shooting ranges the performance standards of Minnesota Statutes 87A shall be allowed to engage in the following authorized activities within the property boundaries of the range:
 - a. **Discharge of Firearms.** Operate the range and conduct activities involving the discharge of firearms.
 - b. **Membership.** Expand or increase its membership or opportunities for public participation related to the primary activity as a shooting range.
 - c. **Meet Standards.** Make those repairs or improvements desirable to meet or exceed requirements of shooting range performance standards.
 - d. **Activities.** Increase events and activities related to the primary activity as a shooting range.
 - e. **Time of Operations.** Conduct shooting activities and discharge firearms daily between 7:00 a.m. and 10:00 p.m.

- f. **Purchase Additional Land.** Acquire additional lands to be used for buffer zones or noise mitigation efforts or to otherwise comply with this Chapter.
2. **Nonconforming Shooting Ranges.** Shooting ranges that do not meet the performance standards in Minnesota Statutes 87A shall be considered nonconforming shooting ranges. Nonconforming shooting ranges shall be allowed to continue and conduct shooting activities within the range's lawful property boundary as of May 28, 2005, provided that the shooting range remains in compliance with the noise and shooting range performance standards in Minnesota Statutes 87A.
3. **Outdoor Shooting Range Mitigation Area.** A mitigation area shall be established for a distance of 750 feet from the perimeter property line of an outdoor shooting range. No change in use, new development, or construction of a structure shall be approved for any portion of property within the mitigation area without an approved Development Permit and a signed mitigation agreement subject to approval by the County Board. The owner/applicant must agree to provide any mitigation necessary to maintain compliance with the performance standards. shooting ranges in existing prior to the effective date of this Ordinance are exempt from these requirements.
4. **Indoor Shooting Ranges.** Indoor shooting ranges shall be constructed below ground to minimize off-site noise.

8-8-6. Public Service and Utility Uses

A. Essential Services.

1. **Permitting and Approval.** Essential services shall only be established with the granting of a Conditional Use Permit and approval of the benefitting property owner(s). A Development Permit, Zoning Certificate or agreement of surrounding property owners is not required.
2. **Setbacks.** All structures housing essential services shall set back at least 50 feet from all lot lines. Utility boxes and underground or overhead utilities extending from the main line to serve lots abutting a public right-of-way are exempt from this requirement.
3. **Minimum Lot Area Exemption.** Lots containing only essential service uses are exempt from the minimum lot Area requirement of the applicable district.
4. **Location.** Essential services shall be located and constructed at such places and in such manner that they will not segment land of any one farm and will not interfere with the conduct of agriculture by limiting or interfering with the access to fields or the effectiveness and efficiency of the farmer and farm equipment including crop-spraying aircraft.
5. **Permitting Criteria.** In consideration of an application for a conditional use, the Planning Commission shall find:
 - a. **Landscaping.** That the landscape treatment is in keeping with the neighborhood and provides screening where appropriate.
 - b. **Public Hazard Not Created.** That the installation is secure from the public and does not create a potential public hazard.

- c. **Architectural Style.** That all proposed structures are of architectural style in keeping with the neighborhood.
 - d. **Access; Parking.** Access and parking are adequately provided.
 - e. **Maintenance.** That all proposed structures will be adequately maintained.
- 6. **Transmission Services.** The applicant for such a conditional use shall conform to the following procedures and standards:
 - a. **Procedure for Transfer.** Essential services such as high voltage (200 KV or less) electrical power or bulk gas or fuel being transferred from station to station and not intended for on-route consumption nor located within highway and street rights-of-way shall follow the following procedure:
 - i. **Filing of Maps.** The owner shall file with the Zoning Administrator such maps indicating the location, alignment, and type of service proposed as shall be requested.
- 7. **Ordinary Service Extensions.** It is not intended that the Zoning Administrator shall request maps or filings for ordinary service extensions which would delay by virtue of such filings or Township Board considerations the services public utilities must immediately provide to customers.
- 8. **Reconstruction or Relocation of Facilities.**
 - a. **Permitting.** No permit shall be necessary under this section to maintain, reconstruct, or relocate existing lines or facilities where the general line and conformation thereof remains essentially the same unless said construction is within the public right-of-way. In such case, the permit shall be obtained from the Zoning Administrator.
 - b. **Emergency repairs.** Emergency repairs requiring a permit may be completed prior to application for permit, provided an application is submitted as soon as possible after the work is completed.

B. Towers.

- 1. **Purpose.** The purposes of the provisions regulating telecommunication towers in this subsection are to:
 - a. Maximize the use of existing and approved towers and buildings in order to reduce the number of new towers necessary to provide telecommunications services to the community;
 - b. Ensure telecommunication towers are designed, sited, and constructed in a manner consistent with the protection of the public health, safety, and general welfare; and
 - c. Require tower sites to be secured in order to discourage trespassing and vandalism.
- 2. **Exemptions.**
 - a. The following tower facilities and activities are permitted uses in all districts of

Clay County and do not require a building permit:

- i. Antennas incidental to residential use including but not limited to television, citizens band, business band, and similar type of antennas;
 - ii. Routine maintenance of existing towers, and the addition of antennas to a tower that meets the standards of this section and does not increase the height of the tower; additional support structures shall require a building permit.
 - b. The following tower facilities are permitted uses in all districts in Clay County, but do require a building permit:
 - i. The addition of an antenna or antennas on existing structures including, but not limited to, buildings, flag poles, church steeples, cupolas, ball field lights, or power line support device where no modifications are required to the existing structure and where the antenna does not increase the height of the structure by more than 20 feet.
 - ii. Towers and antennas used primarily for agricultural purposes provided that all such towers are freestanding (no guy wires), meet all appropriate FAA/FCC requirements, and do not exceed a maximum height of 110 feet above ground level (including tower and antennae).
 - iii. All other tower facilities require a Conditional Use Permit and a building permit pursuant to the terms of this Ordinance.
3. **Application.** Applications for Conditional Use Permits shall be submitted pursuant to the requirements of 8-11-7 (*Conditional Use Permits*) and shall be accompanied by the following:
- a. A Site Plan that includes the following:
 - i. Graphic scale of the plan, not less than 1 inch to 20 feet;
 - ii. North arrow;
 - iii. Location and size of the proposed tower, support structures, accessory buildings, access driveways, public roads, parking fences, signs and landscaped areas;
 - iv. Building setback lines;
 - v. Existing topography, with contour intervals of not more than 10 feet, related to the United States Geological Survey datum;
 - vi. The location of water courses, ravines, bridges, lakes, wetlands, wooded areas, rock outcroppings, bluffs, steep slopes, and other geological features within the site;
 - vii. Proposed surface drainage diagram for the site;
 - viii. Proposed screening; and
 - ix. Proposed removal of natural vegetation.

- b. A vicinity map showing current land uses and existing dwellings and businesses within one-half (0.5) mile of the proposed tower.
- c. A sworn statement signed by applicant that the communications equipment for the proposed tower cannot be accommodated on an existing tower or building within a 2-mile radius of the proposed tower due to one or more of the following reasons:
 - i. The planned equipment would exceed the structural capacity of the existing or approved tower or building, as documented by a qualified and licensed professional engineer, and the existing or approved tower cannot be reinforced or modified to accommodate planned equipment at a reasonable cost.
 - ii. The planned equipment would cause interference materially impacting the usability of other existing or planned equipment at the tower or building as documented by a qualified and licensed professional engineer, and the interference cannot be prevented at a reasonable cost.
 - iii. No existing or approved towers or commercial/industrial buildings within a 2-mile radius meet the radio frequency (RF) engineer requirements.
 - iv. Existing or approved towers and commercial/industrial buildings within a 2-mile radius cannot accommodate the planned equipment at a height necessary to function reasonably as documented by a qualified and licensed professional radio frequency (RF) engineer.
 - v. Despite best efforts, the applicant is unable to negotiate reasonable business terms regarding the lease or purchase of space on an existing tower.
 - vi. The applicant must demonstrate that a good faith effort to co-locate on existing towers and structures within a 2-mile radius was made, but an agreement could not be reached.
- d. A commitment in writing from the applicant committing the applicant and its successors to allow the shared use of the tower facility if an additional user agrees in writing to meet reasonable industry terms and conditions for shared use.
- e. If erection of the tower or construction of any tower facility will disturb any part of a bluff or a steep slope, the applicant shall provide an erosion control plan prepared by a landscape architect or professional engineer.
- f. Proof of filing of an application with the Federal Aviation Administration or an engineer statement showing that no filing with the Federal Aviation Administration is necessary.
- g. A copy of the National Environmental Protection Act study required by the Federal Communication Commission. No antenna shall be installed on any tower facility until a Federal Communication license is issued for that antenna.
- h. A copy of the Certificate of Insurance for liability and worker's compensation insurance that requires notification to Clay County Planning and Zoning Office

prior to cancellation. This insurance shall be kept in effect until the tower facility is removed.

- i. An acceptable financial guarantee equal to 1.50 times the estimated cost of removing the tower facility and restoring the site to its original condition. The estimated cost shall be determined by the Clay County Zoning Administrator.
- j. Application filing fee as determined by resolution of the County Board.

4. Standards.

- a. All telecommunication towers erected within Clay County shall be freestanding towers. No guyed telecommunication towers will be allowed in any district.
- b. No Conditional Use Permit shall be issued for a tower facility within a subdivision intended for residential use.
- c. No tower facility shall be erected within 1,000 feet of the ordinary high-water level of any public water unless there is a finding that there is no other practical alternative location outside of that distance.
- d. All towers shall conform with the following minimum setback requirements:
 - i. All towers shall be situated so as to be located entirely within a single tract of land.
 - ii. All towers shall be set back from all buildings a distance at least equal to the height of the tower.
 - iii. All towers set back from all public roadways a distance at least equal to the height of the tower.
 - iv. All towers shall be setback a distance at least equal to the height of the tower from lot lines for a residential use. The minimum distance to the nearest dwelling shall be the height of the tower plus 100 feet.
- e. The owner's name, telephone number and site ID number shall be posted on the gate of the perimeter fence. No other advertising or identification sign of any kind is permitted on the tower facility, except warning and equipment information required by the manufacturer or by federal, state, or local authorities.
- f. Removal or alteration of vegetation is allowed as necessary for the construction and erection of the tower facility including accessory buildings and supports, but shall be held to a minimum. If erection of the tower or construction of tower facility will disturb any bluffs or steep slopes, the erosion control plan submitted with the application shall be complied with.
- g. All towers erected or located within the County and all wiring therefore shall comply with the following requirements:
 - i. Towers and their antennas shall comply with all applicable provisions of the Ordinance.
 - ii. Towers and their antennas shall be certified by a qualified and licensed professional engineer to conform to the latest structural standards of the

Uniform Building Code and all other applicable reviewing agencies.

- iii. Towers and their antennas shall be designed to conform to accepted electrical engineering methods and practices and to comply with the provisions of the National Electrical Code.
- h. Metal towers shall be constructed of, or treated with, corrosive resistant material, shall be colored alternating red and white, and shall be marked in accordance with permit conditions.
- i. In order to reduce the number of towers needed within the County in the future, any proposed tower shall be designed structurally, electrically, and in all respects, to accommodate both the applicant's antennas and comparable antennas for additional users. For towers greater than 200 feet in height, the structure shall be designed to accommodate at least four additional providers. For towers less than or equal to 200 feet in height, the structure shall be designed to accommodate at least two additional providers. This requirement may be modified if the applicant demonstrates that such a design is not feasible for economic, technical, or physical reasons. To allow for future rearrangement of antennas upon the tower, the tower shall be designed to accept antennas mounted at no less than 20-foot intervals. Government agencies shall have a right-of-first refusal for co-location on approved tower facilities. The tower owner shall file a written right-of-first refusal in favor of government agencies with the County Planning Department at the time of final approval of the tower facility. The right-of-first refusal shall, at a minimum, include the following provisions:
 - i. A requirement for notification of the County Planning Department prior to any leasing of tower space.
 - ii. That if the right to co-locate is exercised by a government agency, the lease rate shall be not greater than the market rate for comparable leases in the area.
- j. All towers shall be reasonably protected against unauthorized climbing. The bottom of the tower, measured from ground level to 12 feet above ground level, shall be designed in a manner to preclude unauthorized climbing and shall be enclosed by a six-foot-high chain link fence with anti-climb barbed wire protection and a locked gate.
- k. All towers and their antennas shall, to the greatest extent possible, utilize building materials, colors, textures, screening, and landscaping that effectively blend the tower facilities with the surrounding natural setting and built environment to the greatest extent possible. A landscaping plan for screening shall be submitted as part of the permit application process.
- l. Trees and large shrubs, native to the area, shall be planted so that the facility is screened from adjacent residential uses. Landscaping shall be maintained for the life of the tower facility.
- m. Towers and their antennas shall not be illuminated by artificial means, except for camouflage purposes (designed as a lighted tower for a parking lot or a ball field)

or if the illumination is specifically required by the Federal Aviation Administration or other authority. No nighttime strobes shall be allowed unless specifically required by the Federal Aviation Administration or other authority.

- n. No part of any antenna or tower, nor any lines, cable, equipment, wires, or braces, shall at any time extend across or over any part of the right-of-way, public street, highway, or sidewalk without approval of the County through the Conditional Use Permit process.
- o. All communication towers and their antennas shall be adequately insured for injury and property damage caused by collapse of the tower. A certificate of insurance shall be filed with the Planning Department prior to commencing operation of the facility.

5. **Antennas Mounted on Roofs, Walls, and existing Towers.** In addition to the submittal requirements required elsewhere in this Ordinance, an application for a building permit for antennas to be mounted on an existing structure shall be accompanied by the following information:

- a. A Site Plan showing the location of the proposed antennas on the structure and documenting that the request meets the requirements of this Ordinance;
- b. A building plan showing the construction of the antennas, the proposed method of attaching them to the existing structure, and documentation that the request meets the requirements of this Ordinance;
- c. Proof of the structure's or tower's ability to support the antennas; and
- d. An intermodulation study to ensure there will be no interference with existing tenants or public safety telecommunication providers.

6. **Completion of Construction.** Tower construction shall be completed within one (1) year from the date of the issuance of the Conditional Use Permit. Landscaping and screening must be installed within the first growing season immediately following construction.

7. **Continued Use, Abandonment and Removal.**

- a. Existing tower facilities may continue in use and Routine maintenance may be performed on them but they may not be altered, converted, modified, transformed, varied, added, to or changed in any way without complying with the terms of this Ordinance.
- b. The owner of an existing tower facility or any tower facility erected or constructed after the passage of this Ordinance shall file an annual statement of operation on or before January 10 of each year following construction of the tower. This statement of operation shall certify that the tower is operational and shall include a summary of the current antenna configuration on the tower. If the statement is not filed by January 10 of any year, the County shall notify the owner in writing of failure to file. Failure to file a statement within 60 days of receiving a notice of failure to file shall be prima facie evidence that the tower facility is no longer in use and may be considered abandoned.
- c. Tower facilities that are not in use for 365 consecutive days shall be deemed

abandoned and shall be removed by the owner within 180 days from the date of the abandonment. Removal includes removal of the complete tower facility, including accessory buildings and related above-ground infrastructure, and restoration of the site to preexisting vegetative cover. An extension to this time-frame may be granted by the Planning Commission upon receipt of a written request from the owner/operator of the facility.

- d. In case of multiple operators sharing the use of a single tower, the tower shall not be deemed abandoned until all users cease operations for a period of 365 consecutive days.
 - e. If the tower facility is not removed in accordance with this subdivision, then the County, after 60 days' notice to the owner or operator of the tower facility, may take legal action. The County's remedies may include obtaining a court order allowing the County to remove the tower facility at the cost to the owner(s) or last operators.
8. **Maintenance.** All tower facilities shall be maintained in a safe and clean condition. The tower facility owner shall be responsible for maintaining a graffiti, debris, and litter-free site. The landscaping plan shall be maintained for the life of the tower facility. If the facility is not maintained, the County may bring legal action. The County's remedies may include, after 60 days' notice to the owner or operators, an order allowing the County to complete the maintenance at the cost to the owner(s) or operators of the tower facility.

C. Solar Energy Systems.

- 1. **Purpose.** This subsection is established to promote the safe, effective use of solar energy systems (SES) less than 50 mega-watts, where such systems present few Land use conflicts with current or future development patterns. Solar energy systems 50 megawatts or greater are permitted by the Minnesota Public Utilities Commission. Solar energy is a renewable and non-polluting energy resource and its conversion to electricity or heat reduces dependence on nonrenewable resources and decreases greenhouse gas emissions. Clay County finds that it is in the public interest to encourage the use and development of renewable energy systems.
- 2. **Interpretation.** The regulations of this section shall be held to be the minimum requirements for the promotion of the public health, safety, and general welfare. These regulations are not intended to interfere with, abrogate, or annul any other ordinance, regulations, statute, or other provision of law. Where these regulations impose restrictions different from any other ordinance, regulation, statute, or other provision of law, the provision that is more restrictive or that imposes higher standards shall control.
- 3. **Definitions.** The following definitions shall apply to this subsection:
 - a. **Agrivoltaics.** An SES co-located on the same parcel of land as agricultural production, including crop production, grazing, apiaries, or other agricultural products or services.
 - b. **Array (solar).** Any number of solar photovoltaic modules or panels connected together to provide a single electrical output.

- c. **Building-integrated solar energy system.** An SES that is an integral part of a principal or accessory structure, rather than a separate mechanical device, replacing or substituting for an architectural or structural component of the building. Building-integrated systems include, but are not limited to, photovoltaic or hot water SES that are contained within roofing materials, windows, skylights, and awnings.
- d. **Grid-intertie solar energy system.** A photovoltaic solar energy system that is connected to an electric circuit served by an electric utility company.
- e. **Ground-mount.** An SES mounted on a rack or pole that rests on or is attached to the ground. Ground-Mounted SES may be a principal or accessory use.
- f. **High-voltage transmission line.** A conductor of electric energy and associated facilities designed for and capable of operation at a nominal voltage of 100 kilovolts or more and is greater than 1,500 feet in length.
- g. **Photovoltaic system.** An SES that converts solar energy directly into electricity.
- h. **Power purchase agreement.** A legally enforceable agreement between two or more persons in which one or more of the signatories agrees to provide electrical power and one or more of the signatories agrees to purchase the power.
- i. **Public conservation lands.** Land owned in fee title by State or Federal agencies and managed specifically for grassland conservation purposes, including but not limited to State Wildlife Management Areas, State Parks, State Scientific and Natural Areas, federal Wildlife Refuges, and Waterfowl Production Areas. For the purposes of this section, public conservation lands will also include lands owned in fee title by non-profit conservation organizations. Public conservation lands do not include private lands upon which conservation easements have been sold to public agencies or non-profit conservation organizations.
- j. **Roof-mount.** An SES mounted on a rack that is fastened to or ballasted on the roof of a structure. A roof-mounted SES is an accessory use.
- k. **Solar easement.** A right to access the solar resource, whether or not stated in the form of a restriction, easement, covenant, or condition, in any deed, will, or other instrument executed by or on behalf of any owner of land or solar skyspace for the purpose of ensuring adequate exposure of a solar energy system, as defined in Section 216C.06, Subdivision 17. Required contents of a solar easement are defined in Minnesota Statute Section 500.30.
- l. **Solar energy system (SES).** A device, array of devices, or structural design feature, the purpose of which is to provide for generation or storage of electricity from sunlight, or the collection, storage, and distribution of solar energy for space heating or cooling, or water heating.
- m. **Solar farm.** A solar array composed of multiple Ground-Mounted panels that is the principal use for the lot(s) on which it is located with the purpose of

generating electricity for wholesale or to multiple community members or businesses located off-site.

- n. **Substation.** Any electrical facility designed to convert electricity produced by an SES to a voltage for interconnection with transmission lines.

4. Standards for All Solar Energy Systems.

- a. **Permitting Districts.** All SES are allowed as provided in *Table 8-1 (Use Table)*.
- b. **Building Permit.** A Solar Energy permit is required for all SES.
- c. **Compliance with Other Laws and Ordinances.** All SES shall comply with all Federal, State, and local laws and ordinances not in conflict with this Ordinance, including but not limited to the State of Minnesota Building Code and the State of Minnesota Electric Code. Solar thermal systems shall comply with the applicable Minnesota State Plumbing Code requirements and with HVAC-related requirements of the Energy Code.

5. Standards for Solar Farms

- a. **Height.** Structures in solar farms shall not exceed 15 feet in height when oriented at maximum tilt.
- b. **Setbacks.** All structures and solar panel installations shall conform with the following minimum setback requirements:
 - i. 100 feet from all Lot Lines.
 - ii. 200 feet from Dwellings on properties adjacent to the solar energy system.
- c. **Foundations.** The manufacturer's engineer or another qualified engineer shall certify that the foundation and design of the solar panels is within accepted professional standards, given local soil and climate conditions.
- d. **Power and Communication Lines.** Power and communication lines running between banks of solar panels may be placed above ground, provided the lines are placed no higher than the top of solar modules. Power and communication lines to electric substations or interconnections with buildings shall be buried underground. All electrical equipment and installations shall meet applicable codes. Exemptions may be granted in the following instances:
 - i. Where shallow bedrock, water courses, or other elements of the natural landscape interfere with the ability to bury lines.
 - ii. When required by the utility company.
- e. **Stormwater Management and NPDES.** Solar farms are subject to Clay County's stormwater management and erosion control standards and NDPES permit requirements.
- f. **Screening.**
 - i. Solar farms shall be screened from dwellings or other Land uses as required by the Planning Commission, unless the affected property owner

- agrees otherwise.
- ii. Clay County may require screening where it determines there is a clear community interest in maintaining a viewshed.
 - iii. The type and location of required screening shall be subject to Planning Commission approval.
 - iv. Screening shall be maintained for the lifetime of the project. Dead or diseased vegetation shall be removed and promptly replaced.
- g. **Ground Cover Requirements.** The following provisions shall be met related to the clearing of existing vegetation and establishment of vegetated ground cover. Additional requirements may apply as required by the Board.
- i. Large-scale removal of mature trees on the site is discouraged. Restrictions on tree clearing, or mitigation for cleared trees may be required by the Board.
 - ii. The project site design shall include the installation and establishment of ground cover meeting the beneficial habitat standards consistent with Minnesota Statutes, section 216B.1642, or successor statutes and guidance as set by the Minnesota Board of Water and Soil Resources (BWSR).
 - iii. Beneficial habitat standards shall be maintained on the site for the duration of operation, until the site is decommissioned. The owner of the solar array shall complete BWSR's established project assessment form every three (3) years and allow the County SWCD to conduct site visits to verify compliance.
 - iv. Clay County may require payment of an inspection fee at the time of the initial permit application to support ongoing inspection of the beneficial habitat ground cover.
- h. **Wetland Review.** Solar farms must comply with the Wetland Conservation Act and will be reviewed by Clay County for compliance. A wetland delineation shall be required unless otherwise determined by the Planning Department.
- i. **Agricultural Protection.** Clay County may require mitigation for solar arrays placed on prime agricultural soils, as defined by the USDA. Mitigation may include:
- i. Demonstrating co-location of agricultural uses on the project site (agrivoltaics).
 - ii. Placing agricultural conservation easements on an equivalent area of prime agricultural land adjacent to or surrounding the project site.
 - iii. Locating the project in a Drinking Water Supply Management Area or wellhead protection area.
- j. **Aviation Protection.** For solar farms located within 500 of an airport or within the Landing Field Zone, the applicant must complete and provide the results of the Solar Glare Hazard Analysis Tool (SGHAT), consistent with the Interim

Policy, FAA Review of Solar Energy Projects on Federally Obligated Airports, or most recent version adopted by the FAA.

- k. **Financial Guarantee.** The applicant shall submit a financial guarantee in the form of a letter of credit, cash deposit, or bond in favor of the County equal to 125 percent of the costs to meet the beneficial habitat standard and screening requirements. The financial guarantee shall remain in effect until vegetation is sufficiently established.
- l. **Abandonment and Decommissioning.** A decommissioning plan is required to ensure that facilities are properly removed after their useful life.
 - i. A solar farm shall be considered abandoned after 12 consecutive months without energy production, unless a plan is submitted to the Clay County Zoning Administrator outlining the steps and schedule for returning the solar farm to service.
 - ii. The decommissioning plan shall include provisions for removal of all structures and foundations, restoration of soil and vegetation, and assurances that financial resources will be available to fully decommission the site.
 - iii. Clay County may require the posting of a bond, letter of credit, or the establishment of an escrow account to ensure proper decommissioning.
- m. **Application Submittals.** The following information shall be provided to the Planning Department prior to issuance of permits.
 - i. The number of panels to be installed.
 - ii. Manufacturer's specifications and recommended installation methods for all major equipment, including solar panels, mounting systems, and foundations.
 - iii. A description of the method of interconnection to a structure or substation.
 - iv. A planting plan meeting the requirements of 8-8-6(C)(5)(g), above, accompanied by a completed project planning assessment form provided by BWSR for review by BWSR or the Clay County Soil and Water Conservation District (SWCD).
 - v. A decommissioning plan meeting the requirements of 8-8-6(C)(5)(l), above.
 - vi. A Site Plan showing the following:
 - 1. Existing lot lines and lot lines extending 100 feet from the exterior boundaries of the development site.
 - 2. Existing public and private roads.
 - 3. Contour lines at 2-foot intervals.
 - 4. Waterways, watercourses, lakes, and public water wetlands.

5. Delineated wetlands.
 6. Flood Hazard District boundaries and 100-year flood elevation, if any portion of the project is within a Flood Hazard District.
 7. The Shoreland District boundary and Ordinary High-Water Level, if any portion of the project is within a Shoreland District.
 8. Mapped prime agricultural soils and farmland of statewide importance.
 9. Location and spacing of solar panels.
 10. Location of access roads.
 11. Planned location of underground or overhead electric lines connecting solar arrays to the building, substation, or other electric load.
 12. New electrical equipment other than at the existing structure or substation that is the connection point for the solar farm.
 13. Surface water drainage patterns.
 14. Proposed stormwater management features.
 15. Proposed erosion and sediment control measures.
 16. Sketch elevation of the site accurately depicting the proposed SES and its relationship to structures on adjacent lots, if any, and the location of required screening, if applicable.
6. **Standards for Accessory Solar Energy Systems.** Solar energy systems are a permitted accessory use in all zoning districts, subject to the following standards:
- a. **Accessory Structures.** Accessory SES, either roof-mounted or ground-mounted, shall not count toward accessory structure limitations.
 - b. **Legal Nonconforming Structures.** Building-mounted SES may be installed on legally established nonconforming structures as long as the SES does not increase the nonconformity.
 - c. **Height.** Ground-mounted SES shall not exceed 15 feet in height when oriented at maximum tilt.
 - d. **Setbacks.** Accessory solar energy systems must meet all structure setbacks for the applicable district, except as specified below.
 - i. **Roof-Mounted SES.** The collector surface and mounting devices for roof-mounted SES shall not extend beyond the exterior perimeter of the building on which the system is mounted or built. Exterior piping for solar hot water systems shall be allowed to extend beyond the perimeter of the building on a side yard exposure.
 - ii. **Ground-Mounted SES.** Ground-mounted solar energy systems may not extend into the side yard, rear yard, or required roadway setback when

oriented at minimum design tilt, except as otherwise allowed for building mechanical systems (e.g., air conditioning unit) on small lots less than two (2) acres.

7. **Maximum Coverage.** Roof- or building-mounted SES, excluding building-integrated systems, shall not cover more than eighty 80 percent of the south-facing or flat roof upon which the panels are mounted. The total collector surface area of pole or ground mount systems in non-agricultural districts shall not exceed one percent of the lot area.
8. **Approved Solar Components.** Electric solar system components must have an underwriters laboratory (UL) listing.
9. **Utility Notification.** No grid-interconnected photovoltaic system shall be installed until evidence has been given to the planning department that the owner has notified the utility company of the customer's intent to install an interconnected, customer-owned generator. Off-grid systems are exempt from this requirement.
10. **Enforcement, Violations, Remedies, and Penalties.** This subsection 8-8-6(C) shall be enforced in accordance with the process and procedures established under 8-11-12 (*Violation, Penalties, and Enforcement*).

D. Wind Energy Conversion Systems.

1. **Purpose.** This subsection is established to regulate the installation and operation of wind energy conversion systems (WECS) within Clay County not otherwise subject to siting and oversight by the State of Minnesota under the Minnesota Power Plant Siting Act (Minnesota Statutes 216E.01 – 216E.18). Wind energy is a renewable and non-polluting energy resource and its conversion to electricity reduces dependence on nonrenewable resources and decreases greenhouse gas emissions. Clay County finds that it is in the public interest to encourage the use and development of renewable energy systems. This section is intended to promote wind energy development in appropriate areas while mitigating adverse impacts to pre-existing land uses and facilities.
2. **Interpretation.** The regulations of this section shall be held to be the minimum requirements for the promotion of the public health, safety, and general welfare. These regulations are not intended to interfere with, abrogate, or annul any other ordinance, regulation, statute, or other provision of law. Where these regulations impose restrictions different from any other ordinance, regulation, statute, or other provision of law, the provision that is more restrictive or that imposes higher standards shall control.
3. **Definitions.** The following definitions shall apply to this subsection:
 - a. **Aggregated project.** WECS projects that are developed and operated in a coordinated fashion, but which have multiple entities separately owning one or more of the individual WECS within the larger project. Associated infrastructure, such as power lines and transformers that service the facility, may be owned by a separate entity but are also included as part of the aggregated project.
 - b. **Fall zone.** The area, defined as the furthest distance from the tower base, in which a tower will collapse in the event of a structural failure, as certified by

a Professional Engineer. This area is no greater than the total height of the structure.

- c. **Feeder line.** Any power line that carries electrical power from one or more wind turbines or individual transformers associated with an individual wind turbine to the point of interconnection with the electric power grid. In the case of interconnection with a high voltage transmission system, the point of interconnection shall be the substation serving the WECS.
- d. **Meteorological tower.** For the purposes of this section, meteorological towers are those towers which are erected primarily to measure wind speed and directions and other data relevant to siting WECS. meteorological towers do not include towers and equipment used by airports, the Minnesota Department of Transportation, or other similar applications to monitor weather conditions.
- e. **Micro-WECS.** Micro-WECS are WECS of 5 kW nameplate generating capacity or less and mounted on a tower.
- f. **Nameplate capacity.** The maximum rated output of electrical power production of a generator under specific conditions designated by the manufacturer with a nameplate physically attached to the generator.
- g. **Non-participating.** Any landowner except those on whose property all or a portion of a WECS is located pursuant to an agreement with the facility owner or operator.
- h. **Power purchase agreement.** A legally enforceable agreement between two or more persons where one or more of the signatories agrees to provide electrical power and one or more of the signatories agrees to purchase the power.
- i. **Project boundary.** The boundary of the area over which the entity applying for a WECS permit has legal control for the purposes of installation of a WECS. This control may be attained through fee title ownership, easement, or other appropriate contractual relationship between the project developer and Landowner.
- j. **Public conservation lands.** Land owned in fee title by State or Federal agencies and managed specifically for grassland conservation purposes, including but not limited to State Wildlife Management Areas, State Parks, State Scientific and Natural Areas, federal Wildlife Refuges and Waterfowl Production Areas. For the purposes of this section, public conservation lands will also include lands owned in fee title by non-profit conservation organizations. Public conservation lands do not include private lands upon which conservation easements have been sold to public agencies or non-profit conservation organizations.
- k. **Rotor diameter (RD).** The diameter of the circle described by the moving rotor blades.
- l. **Shadow flicker.** Alternating changes in light intensity caused by the movement of wind turbine blades casting shadow on the ground or a nearby stationary object.

- m. **Substation.** Any electrical facility designed to convert electricity produced by wind turbines to a voltage for interconnection with transmission lines.
- n. **Tier I WECS.** Utility Scale WECS of equal to or greater than 200 kW in total nameplate capacity.
- o. **Tier II WECS.** A WECS of less than 200 kW in total nameplate capacity. These include systems that are primarily used for power on-site or those that are net-metered.
- p. **Tier III WECS.** Small WECS that are exclusively behind-the-meter turbines up to 40 kW in capacity, including micro-WECS.
- q. **Total height.** The highest point, above ground level, reached by a rotor tip or any other part of the WECS.
- r. **Total nameplate capacity.** The total of the maximum rated output of the electrical power production equipment for a WECS project.
- s. **Tower.** Towers include vertical structures that support the electrical generator, rotor blades, or meteorological equipment.
- t. **Tower height.** The total height of the WECS exclusive of the rotor blades.
- u. **Transmission line.** Electrical power lines that carry voltages of at least 69,000 volts (69 kV) and are primarily used to carry electric energy over medium to long distances rather than directly interconnecting and supplying electric energy to retail customers.
- v. **Wind energy conversion system (WECS).** A device such as a wind charger, windmill, or wind turbine and associated facilities that converts wind energy to electric energy, including but not limited to power lines, transformers, and substations. The energy may be used on-site or distributed into the electrical grid.
- w. **Wind easement.** A right to access the wind resource, whether or not stated in the form of a restriction, easement, covenant, or condition, in any deed, will, or other instrument executed by or on behalf of any owner of land or air space for the purpose of ensuring adequate exposure of a wind power system to the winds. Required contents of a wind easement are defined in Minnesota Statutes Section 500.30.
- x. **Wind turbine.** Any piece of electrical generating equipment that converts the kinetic energy of blowing wind into electrical energy through the use of airfoils or similar devices to capture the wind.

4. Permitting Procedures.

- a. **Local Permits.** Zoning, Development Permits, Conditional Use Permits, and variances shall be applied for and reviewed under the procedures established in this Ordinance.
- b. **Aggregated Projects.** Aggregated projects may jointly submit a single application and be reviewed under a single proceeding, including notices, hearings, reviews, and approvals. Permits will be issued and recorded separately.

Joint applications will be assessed fees as one project.

- c. **Notice to Public Utilities Commission.** Upon issuance of a Conditional Use Permit, all WECS shall notify the Minnesota Public Utilities Commission (PUC) Energy Facilities Permitting Program Staff of the project location and details on the survey form specified by the PUC.
5. **Established Wind Resource.** All WECS shall only be installed where there is an established wind resource. An established wind resource can be documented in the following ways:
 - a. The planned Turbine site has a minimum 11 mph average wind speed at the designed hub height, as documented on the most recent version of Minnesota Department of Commerce statewide wind speed maps.
 - b. The planned Turbine has a minimum height of 80 feet and the blade arc is 30 feet higher, on a vertical measurement, than all structures and trees within 300 feet of the tower.
 - c. The applicant submits an analysis conducted by a certified wind energy installer or site assessor (North American Board of Certified Energy Professionals, NABCEP, or equivalent) that includes estimates of wind speed at Turbine height based on measured data, estimated annual production, and compliance with the Turbine manufacturer's design wind speed.
6. **Application Submittals for all WECS.** Applications for all WECS shall include the following:
 - a. Letter from the State Agency responsible for size determination of a project, pursuant to Minnesota Statutes, Chapter 216F.011, as amended.
 - b. The name(s) and address(es) of the project applicant(s).
 - c. The name(s) and address(es) of the project owner(s).
 - d. The legal description and address of the project.
 - e. Documentation of land ownership or legal control of the property.
 - f. Signed copy of the power purchase agreement (or application for interconnection) or documentation that the power will be utilized on-site.
 - g. Description of the project, including the number, type, total nameplate capacity, tower height, rotor diameter, total height of all wind turbines, and means of interconnecting with the electrical grid.
 - h. Engineer's certification of the tower structure and foundation. Manufacturer certification and specification sheets may, at the discretion of Clay County, be used in place of an engineering study for Tier II WECS.
 - i. Site layout, including the location of the project boundary (purchased wind rights), lot lines, roads, wind turbines, electrical wires, interconnection points with the electrical grid, all related accessory structures, and areas to be used for staging during construction or maintenance. The site layout shall include distances and be

drawn to scale. Applications for Tier II WECS that are not connected to the electric grid shall identify the location of battery or other electricity storage device.

- j. The latitude and longitude of all WECS and meteorological towers.
- k. An elevation drawing accurately depicting the proposed WECS and the location of all buildings, structures, and any other WECS within 500 feet of each proposed Tier II WECS and within three rotor diameters of each Tier I WECS.
- l. Copies of all permits or documentation that indicate compliance with all other applicable State and Federal regulatory standards, including but not limited to:
 - i. Uniform Building Code;
 - ii. The National Electrical Code;
 - iii. Federal Aviation Administration (FAA); and
 - iv. Minnesota Pollution Control Agency (MPCA)/Environmental Protection Agency (EPA).

7. Additional Application Materials for Tier I WECS. The application for Tier I WECS shall also include:

- a. A USGS topographical map, or map with similar data, of the property and surrounding area, including any other WECS within 10 rotor diameters of the proposed WECS.
- b. An elevation drawing accurately depicting the proposed WECS and the location of all buildings, structures, and any other WECS within three rotor diameters of each Tier I WECS.
- c. Location of lakes, wetlands, parks, and protected habitats or natural areas within the project boundary and within 1,320 feet of the proposed WECS.
- d. An acoustical analysis documenting the sound level within 1,000 feet of turbines. The analysis may include a discussion of local ambient environmental conditions (e.g., wind speeds/prevaling direction and existing background noise).
- e. Location of all communication towers within two (2) miles of the proposed WECS and documentation that the applicant has notified the operators of such towers of the proposed WECS.
- f. Identification of all Non-Participating residences within the project boundary.
- g. Clay County may require a shadow flicker study where a Tier I Turbine's shadow is cast on a Non-Participating property within the project boundary.
- h. Identification of existing WECS within a 1-mile radius of the project boundary and a description of potential impacts to wind resources on adjacent properties.
- i. A decommissioning plan that includes the provision of financial assurances at the discretion of Clay County. The applicant may be required to establish an escrow account to fund decommissioning costs.

- j. Location of all known public or private airports or heliports within five (5) miles of the proposed WECS.
 - k. Identification of State, Federal, County and/or Township roads to be utilized for material transportation and construction activities. The applicant must provide written documentation that all haul routes have been approved by each of the road authorities with jurisdiction.
 - l. Additional information stated in Minnesota Rules, part 7854.0500.
8. **Permitting Districts.** All WECS are allowed as provided in *Table 8-1 (Use Table)*.
9. **Setbacks.** All WECS shall adhere to the setbacks established in *Table 8-3*, below.

Table 8-3. Setback Requirements for Wind Energy Conversion Systems

Setback Feature	Tier I Turbines	Tier II and Tier III Turbines (Micro-WECS)	Meteorological Tower
Lot lines ¹	5 rotor diameters along the primary wind axis, 3 rotor diameters along the secondary wind axis	The fall zone + 10 feet or 1.1 times the total height	The fall zone + 10 feet or 1.1 times the total height
Dwellings ² , participating	750 feet	NA	The fall zone + 10 feet or 1.1 times the total height
Dwellings ² , non-participating	1,000 feet	Encompassed in property line setback.	The fall zone + 10 feet or 1.1 times the total height
Public right-of-way (roads, railroads, power lines, etc.) ³	The fall zone + 10 feet or 1.1 times the total height	The fall zone + 10 feet or 1.1 times the total height	The fall zone + 10 feet or 1.1 times the total height
Public conservation lands	600 feet	1.1 times the total height.	600 feet
Wetlands, USFW Types III, IV, and V	600 feet	NA	600 feet
Other structures	To be considered.	To be considered.	To be considered.
Other Existing WECS ⁴	To be considered.	To be considered.	To be considered.
Airports	No WECS shall be located so as to create an obstruction to navigable airspace of public and private airports in Clay County. setbacks or other limitations shall be determined in accordance with MnDOT Department of Aviation and Federal Aviation Administration (FAA) requirements.		

Setback Feature	Tier I Turbines	Tier II and Tier III Turbines (Micro-WECS)	Meteorological Tower
Notes: 1. Internal lot line setbacks may be waived for aggregated projects. 2. The setback for new dwellings shall be reciprocal in that no new dwelling shall be constructed within the required WECS setback. 3. The setback shall be measured from future rights-of-way if a planned change or expanded right-of-way is known. 4. Several factors should be considered to minimize or eliminate impact on existing WECS, including: the relative size of the existing and proposed WECS, the alignment of the WECS relative to the predominant winds, and the extent of wake interference impacts on existing WECS.			

10. Requirements and Standards.

- a. **Engineering Certification.** For all WECS, the manufacturer's engineer or another qualified engineer shall certify that the Turbine, foundation, and tower design of the WECS is within accepted professional standards, given local soil and climate conditions.
- b. **Rotor Safety.** All WECS shall be equipped with both a manual and automatic braking device capable of stopping the WECS operation in high winds (40 mph or greater).
- c. **Clearance.** Rotor blades or airfoils must maintain at least 30 feet of clearance between their lowest point and the ground.
- d. **Warnings.**
 - i. For all Tier I WECS, a sign or signs shall be posted on the tower, transformer, and substation warning of high voltage. Signs with emergency contact information shall also be posted on the Turbine or at another suitable point.
 - ii. For all guyed towers, visible and reflective objects, such as plastic sleeves, reflectors, or tape, shall be placed on the guy wire anchor points and along the outer and innermost guy wires up to a height of 8 feet above the ground.
 - iii. Consideration shall be given to painted aviation warnings on meteorological towers of less than 200 feet.
 - iv. All WECS and meteorological towers more than 100 feet in total height shall be required to have safety lighting.
- e. **Energy Storage.** Batteries or other energy storage devices shall be designed consistent with the Minnesota Electric Code and Minnesota Fire Code.

f. **Avoidance of and Mitigation of Damages to Infrastructure.**

i. **Roads.** applicants for Tier I WECS shall:

1. Identify all public roads to be used for the purpose of transporting WECS, substation parts, materials, and/or equipment for construction, operation, or maintenance of the WECS and obtain applicable weight and size permits from the impacted road authority(ies) prior to construction.
2. Contact the road authority regarding road closures, load hauling permits, access/driveway permits, standard utility permits, and any other road activities that may require permits.
3. Contact the Clay County Dispatch prior to any road closures for the re-routing of emergency vehicles during the closure.
4. Contact the road authority to conduct an inspection of the road condition of the haul routes before initiating construction and after the WECS is completed.
5. Provide a performance bond to be held by the County until the Township and/or County road authority(ies) have provided the County Auditor with a written release that all haul routes within their jurisdiction in Clay County have been returned to pre-construction condition.

ii. **Drainage System.** The applicant shall be responsible for timely repair of damage to public and private drainage systems stemming from construction, operation, maintenance, or decommissioning.

g. **Height Standards.**

- i. Tier II WECS shall have a total height of less than 200 feet.
- ii. Tier III WECS shall have a total height of less than 101 feet.

h. **Turbine Certification.** Tier II and Tier III WECS turbines shall be certified by the Small Wind Certification Council (SWCC) Microgeneration Certification Scheme (MC) or must be listed by the Interstate Turbine Advisory Council.

i. **Tower Configuration.** All Tier I WECS shall be installed with a tubular, monopole type tower.

j. **Color and Finish.** All wind turbines and towers that are part of a WECS shall be white, gray, or another non-obtrusive color. Blades may be black to facilitate deicing. Finishes shall be matte or non-reflective. Exceptions may be made for meteorological towers, where concerns exist relative to aerial spray applicators.

k. **Lighting.** Lighting, including lighting intensity and frequency of strobe, shall adhere to but not exceed requirements established by Federal Aviation Administration permits and regulations. Red strobe lights are preferred for nighttime illumination to reduce impacts on migrating birds. Red pulsating incandescent lights should be avoided. Exceptions may be made for

meteorological towers, where concerns exist relative to aerial spray applicators.

- l. **Signage.** All Signage on site shall comply with 8-9-6 (*Signs*). The manufacturer's or owner's company name and/or logo may be placed upon the nacelle (the compartment containing the electrical generator) of the WECS.
- m. **Waste Disposal.** Solid and hazardous wastes, including but not limited to crates, packaging materials, damaged or worn parts, as well as used oils and lubricants, shall be removed from the site promptly and disposed of in accordance with all applicable local, state, and federal regulations.
- n. **Shadow Flicker.** Tier I WECS shall be designed to avoid unreasonable adverse shadow flicker effect at any occupied buildings located on a non-participating property. Clay County may require a shadow flicker study to evaluate the degree of exposure for non-participating buildings.
- o. **Feeder Lines.** All communication and feeder lines subject to Clay County authority equal to or less than 34.5 kV in capacity shall be buried where reasonably feasible.
- p. **Noise.** All WECS shall comply with Minnesota Rules 7030, governing noise, or shall not exceed 50 dB(A) when measured from the outside of the nearest dwelling, business, school, hospital, religious institution, or other inhabited non-participating structure. The audible noise from WECS may periodically exceed allowable noise levels during extreme wind events (winds above 30 mph).
- q. **Native Prairie Protection.** WECS shall not be placed in native prairie unless approved in a native prairie protection plan. If native prairie is present, the permittee shall, with the advice of the Minnesota Department of Natural Resources (DNR) and any others selected by the permittee, prepare a native prairie protection plan and submit it to the County and the DNR Commissioner 60 days prior to the start of construction.
- r. **Electrical Codes and Standards.** All WECS and accessory equipment and facilities shall comply with the National Electrical Code and other applicable standards.
- s. **Federal Aviation Administration.** All WECS shall comply with FAA standards and permits.
- t. **Interference.** The applicant shall minimize or mitigate interference with electromagnetic communications, such as radio, telephone, microwaves, or television signals cause by any WECS. The applicant shall notify all communication tower operators within two (2) miles of the proposed WECS location upon application to the County for permits. No WECS shall be constructed so as to interfere with County, State, or Federal microwave transmissions.

11. Discontinuation and Decommissioning.

- a. **Abandonment.** A WECS shall be considered abandoned after 12 consecutive months without energy production, unless a plan is developed and submitted to

the Clay County Zoning Administrator outlining the steps and schedule for returning the WECS to service. All WECS and accessory facilities shall be removed to four (4) feet below ground level within 90 days of the abandonment.

- b. **Decommissioning Plan Required.** All Tier I and Tier II WECS shall have a decommissioning plan outlining the anticipated means and cost of removing WECS at the end of their serviceable life or upon abandonment. The cost estimates shall be made by a competent party, such as a Professional Engineer, a contractor capable of decommissioning, or a person with suitable expertise or experience with decommissioning. The plan shall also identify the financial resources that will be available to pay for the decommissioning and removal of the WECS and accessory facilities. The plan shall also address road maintenance during and after completion of the decommissioning. Clay County may, at its discretion, require a letter of credit or security bond with adequate funds to cover decommissioning costs.
- c. **Repowering.** Repowering Tier I or Tier II WECS is allowed as an alternative to decommissioning at the end of the turbine's life. Repowering must not change any regulated component or design element of the Turbine, as originally approved.

12. **Preconstruction Meeting.** Applicants for Tier I WECS will conduct a meeting prior to construction commencement with a written notice sent to the following individuals a minimum of one week before the meeting:

- a. Township Chairman
- b. Clay County Engineer
- c. Clay County Sheriff
- d. Clay County Zoning Administrator
- e. Area Hydrologist, Minnesota Department of Natural Resources
- f. Minnesota Pollution Control Agency
- g. United States Farm Service Agency
- h. Clay County Soil & Water Conservation District
- i. US Fish & Wildlife Service
- j. Minnesota State Historical Society
- k. Two (2) Planning Commission Members (Chair and County Board Representative)
- l. Minnesota Department of Transportation (MnDOT)

13. **Tier III Standards (Micro-WECS).** The following standards shall apply to micro-WECS:

- a. Micro-WECS shall be allowed on lots larger than two (2) acres according to the district permitting standards in *Table 8-1 (Use Table)*, provided the following

conditions are met:

- b. The applicable setback requirements in Table 4-3 are met.
- c. The tower height is less than 101 feet.
- d. The proposed system is certified to operate at noise levels lower than 50 dB(A) at a distance no greater than the distance from the base of the tower to the closest lot line.

14. Enforcement, Violations, Remedies, and Penalties. This section shall be enforced in accordance with the process and procedures established under 8-11-12 (*Violations, Penalties, and Enforcement*).

8-8-7. Accessory Uses

A. Accessory Structures and Garages.

1. Standards.

- a. Accessory structures with a floor area of 144 square feet or less with a permanent foundation and those with a floor area of 400 square feet or less without a permanent foundation that are not in shoreland or flood hazard areas do not require a building permit. All accessory structures must meet the required setbacks.
- b. Within the UE District (Tier 1 and Tier 2), any structure or garage that is accessory to a dwelling shall not exceed 1,200 square feet in floor area.

B. Accessory Dwelling Units.

- 1. **General Standards.** One (1) accessory dwelling unit shall be permitted on any conforming property with an existing single-family dwelling if development conforms to the following requirements:
 - a. The accessory dwelling unit minimum size is 150 square feet.
 - b. The accessory dwelling unit must be detached from the principal dwelling.
 - c. The accessory dwelling unit must not surpass 75% of the principal dwelling floor area.
 - d. The accessory dwelling unit must be placed on a permanent foundation or be a manufactured home.
 - e. The accessory dwelling unit may only be placed in the side or rear yard.
 - f. The accessory dwelling unit must have a sewage treatment system or holding tank that meets County Health requirements.
 - g. Accessory dwelling units are prohibited in Flood Hazard Districts.
 - h. Accessory dwelling units shall not count toward the density calculation for the applicable district and subdivision type.

- 2. **Accessory Dwelling Units in the Urban Expansion District.** Accessory dwelling units

are prohibited in Tier 1 of the UE District. In Tier 2 of the UE District, one accessory dwelling unit per lot is allowed with an Interim Use Permit.

C. Home Occupations.

1. **Administrative Home Occupations within Cluster Subdivisions.** Home occupations within dwellings in cluster subdivisions are a permitted use if all of the following provisions are met:
 - a. **Location.** The home occupation shall be located wholly within the dwelling and shall be incidental and subordinate to the residential use of the property.
 - b. **Maximum Size.** The area of the dwelling where the home occupation is located shall not exceed 25 percent of the main floor area, but not including basement or garage floor space.
 - c. **Structural Changes.** Structural changes shall not be made in the dwelling.
 - d. **Employees.** Employees shall be limited to person(s) residing in the dwelling, immediate family members, and two additional nonfamily employees.
 - e. **Sign.** One non-illuminated sign only of a maximum size of 4 square feet and attached to the dwelling is allowed to advertise the home occupation on site.
 - f. **Evidence of Occupation.** Evidence of the occupation such as outdoor storage shall not be visible from the road, except one sign that meets the provisions of item 5, immediately above.
 - g. **Traffic.** No traffic shall be generated by the home occupation beyond that which is reasonable and normal for the area in which it is located.
 - h. **Sewage Treatment System.** The sewage treatment system shall be adequate for the residential and home occupation use combined.
2. **Administrative Home Occupations Outside of Cluster Subdivisions.** Home occupations operated on residential lots not located in cluster subdivisions are a permitted use if all of the following provisions are met:
 - a. **Location.** Home occupations operated on residential lots not located in cluster subdivisions may be located within the dwelling or in a separate non-residential or farm building and shall be incidental and subordinate to the residential use of the property.
 - b. **Maximum Size.**
 - i. If the home occupation is located within the dwelling, the area of the dwelling where the home occupation is located shall not exceed 25 percent of the main floor area, exclusive of basement or garage. Structural additions may be made to a dwelling to accommodate a home occupation provided the alterations shall not exceed 25 percent the main floor of the area of the dwelling, exclusive of the basement or garage.
 - ii. Any accessory structure principally used for the home occupation shall not exceed 2,400 square feet in floor area.

- c. **Tax Classification.** Home occupations located in accessory structures may result in a split tax classification for the lot on which the structures are located. A commercial property tax rate may apply to home occupations in accessory structures.
 - d. **Employees.** Employees shall be limited to person(s) residing in the dwelling, immediate family members, and two (2) additional non-family employees.
 - e. **Sign.** One non-illuminated sign only of a maximum size of four (4) square feet is allowed to advertise the home occupation on site.
 - f. **Evidence of Occupation.** Evidence of the occupation, such as outdoor storage, shall not be visible from the road or adjacent residential properties, except one sign that meets the provisions of subsection 5, immediately above.
 - g. **Traffic.** No traffic shall be generated by the home occupation beyond that which is reasonable and normal for the area in which it is located.
 - h. **Sewage Treatment System.** The sewage treatment system shall be adequate for the residential and home occupation use combined.
 - i. **Parking.** One (1) additional parking space may be provided for the use of clients, deliveries, etc.
3. **Interim Home Occupations.** Interim home occupations not located in cluster subdivisions may exceed the provisions of 8-8-7(C)(2), immediately above, if they meet all of the following provisions:
- a. **Interim Use.** Home occupations allowed under this section shall be processed as an interim use meeting the requirements of this subsection 8-8-7(C)(3). A Site Plan shall be submitted with the Interim Use Permit application showing the location of all existing structures and describing the proposed use.
 - b. **Review of Permit.** Interim home occupation uses shall be reviewed and inspected by the planning department at least once every five (5) years for compliance with conditions.
 - c. **Location.** Interim home occupations shall be located on lots not located in cluster subdivisions. Interim home occupations may be located within the dwelling or in separate non-residential structures.
 - d. **Maximum Size.**
 - i. If the home occupation is located within the dwelling, the area of the dwelling where the home occupation is located shall not exceed 25 percent of the main floor area, exclusive of basement or garage floor space. Structural additions may be made to a dwelling to accommodate a home occupation provided the alterations shall not exceed 25 percent of the main floor of the area of the dwelling, exclusive of basement or garage floor area.
 - ii. A new accessory structure or structures principally used for the home occupation shall not exceed 20,000 square feet in total for all structures

thus used. Proposed uses exceeding the size limits in this paragraph shall be located in the ASC, Agricultural Service Center District or other commercial district due to associated traffic, parking, employee, utility and signage needs.

- e. **Minimum Lot Size.** The minimum lot size for a lot on which an interim home occupation is permitted shall be two (2) acres.
- f. **Employees.** Employees shall be limited to person(s) residing in the dwelling, immediate family members, and up to five (5) additional non-family employees. The Planning Commission may allow additional employees if all performance standards are met.
- g. **Sign.** One non-illuminated sign only of a maximum size of 40 square feet is allowed to advertise the home occupation on site. Such sign shall meet the setbacks for structures for the district in which the home occupation is located.
- h. **Parking.** Additional parking spaces may be required by the Planning Commission for the use of clients, deliveries, etc.
- i. **Performance Standards.**
 - i. **Adverse Effects.** No equipment or processes used in the interim home occupation shall create noise, vibration, glare, fumes, odors or electrical interference that creates a nuisance or trespass to properties in the vicinity.
 - ii. **Traffic.** No traffic shall be generated by the home occupation, beyond that which is reasonable and normal for the area in which it is located.
 - iii. **Buffering.** Buffering may be required by the Planning Commission to minimize adverse effects on adjacent properties and roadways.
 - iv. **Utilities.** The home occupation shall not create usage exceeding the capacity of available on-site sewage treatment system and water supply.

D. In-Home Day Care.

- 1. **Licensing.** A day care allowed under this section shall meet the requirements of Minnesota Rules Chapter 9502 and the operator shall obtain the required license specified in Minnesota Rules Chapter 9502.
- 2. **Accessory to Dwelling.** The day care shall be located within a principal dwelling.
- 3. **Home Occupation.** An in-home day care shall be considered a home occupation and shall meet the standards for home occupations under 8-8-7(C), except that the size limits in dwellings shall not apply.

E. Farm Animals on Residential Lots.

- 1. **Permitted Districts.** Farm animals may be permitted as an accessory use in all districts on residential lots as defined in Minnesota Statute 273.13, or by the Clay County Assessor for classification as “Residential” (Class 1) for property taxation purposes.
- 2. **Definitions.** The following definitions shall apply to this section:

- a. **Animal Unit.** A multiplication factor set by the Minnesota Pollution Control Agency in Minnesota Rules, Chapter 7020, which is hereafter adopted by reference without change except as may be amended by the state.
 - b. **Farm Animal.** Those animals defined by Minnesota Rules, Chapter 7020, including cattle, swine, horses, sheep, turkeys, chickens, and ducks. Unlisted species may be permitted, with animal units calculated as provided in MR 7020.
 - c. **Farm Animals on Residential Lots.** The husbandry of domestic livestock or poultry and their products for home use or consumption including breeding, feeding, raising, and housing. Any sales are minor and incidental.
3. **Humane Care.** The keeping of farm animals on residential property shall meet the minimum standards of Minnesota Statutes 343.21.
4. **Minimum Lot Area and Number of Farm Animals.**
 - a. A minimum lot area of two (2) acres is required for the keeping of one (1) animal unit, with additional animal units permitted at the rate of one (1) for every additional acre on the premises, or the fractional equivalent.
 - b. For lots with an area that is less than two (2) acres, the permitted animal unit shall be prorated, for example, 0.5 animal units for a 1-acre lot.
5. **Manure Management.** Manure shall be managed properly to maintain sanitary conditions and control odor. Manure can be handled as follows:
 - a. Regularly placed in a plastic garbage bag, tightly closed, for periodic removal from the premises with normal garbage collection.
 - b. Incorporated immediately into the soil of a garden or composted for future use in gardens or flower beds.
 - c. Stored in a covered, well-drained storage area, located 50 feet or more from the property line, until manure can be managed as described above.
6. **Setbacks.**
 - a. No farm animal, stable, barn, or shelter shall be located within 50 feet of any neighboring dwelling or structure.
 - b. Unroofed manure storage areas shall be at least 100 feet from a water-supply well.
7. **Fencing.** Yard areas used to provide grazing or exercise for farm animals must be fully fenced to ensure animal and human safety and minimize the possibility of property damage.

F. Vehicle Storage.

1. **Definition.** Vehicle storage shall mean the presence of any vehicles outside of a structure, exclusive of salvage yards and vehicle and equipment sales uses, where such vehicles are not currently licensed and insured and are not in working order.
2. **Limitation on Storage.** No more than four (4) such vehicles shall be stored on a property. The storage of vehicles shall only include the storage of intact vehicles and

shall not include the storage of vehicle parts.

3. **Setbacks.** All stored vehicles shall be set back at least 25 feet from all lot lines.

G. Recreational Vehicles.

1. **Licensing.** Recreational vehicles shall have current licenses required for highway use.
2. **Location.** Recreational vehicles shall be located on one of the following sites:
 - a. Individual lots of record.
 - b. Existing commercial recreational vehicle parks or campgrounds.
3. **Performance Standards.**
 - a. **Limitation on Vehicles.** No more than two (2) recreational vehicles shall be permitted on individual lots of record.
 - b. **Highway Ready.** Recreational vehicles must be highway ready meaning on wheels or the internal jacking system, are attached to the site only by quick disconnect type utilities commonly used in campgrounds and trailer parks and the recreational vehicle has no permanent structural type additions attached to it.
4. **Floodplain Requirements.** Recreational vehicles stored within a floodplain shall conform to all requirements of 8-3-11 (*Manufactured Homes and Recreational Vehicles*). There shall be no development on the lot or attachment to the recreational vehicle that hinders the removal of the recreational vehicle should flooding occur, regardless of whether the recreational vehicle is located in a Flood Hazard District.

H. Swimming Pools.

1. **Safety Standards.** All swimming pools are required to be fenced or have an alternative safety measure in place to restrict access to swimming areas. Fencing shall surround the swimming pool and shall be a minimum of four (4) feet in height. Additional fencing shall not be required for above-ground pools, provided access to all swimming areas is restricted by deck railings. Alternative safety measures may include locking covers, power covers, vegetation that prevents access, or any other design feature that restricts access to swimming areas from other properties.

I. Above-ground Storage of Petroleum Products.

1. **Reporting Requirements.** The MPCA must be notified of:
 - a. All storage tanks with a capacity of 500 gallons or more that are accessory to Commercial uses; and
 - b. All storage tanks with a capacity of 1,100 gallons that are accessory to industrial uses or agricultural uses.

J. Storage Yards.

1. **Accessory Use.** Storage yards, including the outdoor storage of equipment, machinery, or materials, shall only be permitted as an accessory use to allowed commercial or industrial uses, subject to the standards for this section.
2. **Screening.** Storage yards shall be fully screened from adjacent lots containing a dwelling

by a sight-obscuring fence to a minimum height of six (6) feet above grade or by other opaque screening material which fully blocks the view of the storage yard from adjacent residential uses.

3. **Maximum Size.** Storage yards shall occupy no more than 10 percent of the lot area up to 10,000 square feet unless otherwise determined by the Planning Commission.
4. **Setbacks.** Storage yards shall not be permitted within any required lot line setback.
5. **Limited Highway Commercial District and Resource Protection – Wellhead Protection District.** Equipment, machinery, or materials stored outdoors must be on an impervious surface.

K. Farm Stands; Seasonal Produce Sales.

1. **On-farm Produce.** Accessory farm stands shall sell only agricultural products produced on the farm where the stand is located.
2. **Maximum Size.** Accessory farm stands shall be limited to one (1) structure not exceeding 600 square feet.
3. **Parking.** Off-street parking shall be provided outside of any road right-of-way.

8-8-8. Temporary Uses

- A. **Permitting Standards.** Temporary uses shall be permitted with an Administrative Permit.
- B. **Requirements.** Temporary uses shall be of a truly temporary nature and shall conform to the following requirements:
 - a. Temporary uses shall not involve the erection of permanent buildings or structures, and;
 - b. Temporary uses shall be limited to a duration of six (6) months.